CORPORATE LAW INDEX

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CA Vinay Kumar



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Law Topic-Wise INDEX (A-Z)

TOPIC	Pg No.
A	1-5
B	6
C	7-10
D	11-13
E	14-16
F	17-18
G	19
H	19
I	20-22
J	22
K	22
L	23-24
M	25-26
N	27-28
O	29-30
P	31-36
Q	37
R	37-40
S	41-43
T	44-45
U	45
V	46
W	47
X	-
Y	-
Z	-



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Chapter Sequence

Corporate & Economic Law

ChNo	Chapter
1	Appointment & Qualifications of Directors
2	Appointment & Remuneration of Managerial Personnel
3	Meetings of Board & its Powers
4	Inspection, Inquiry & Investigation
5	Compromises, Arrangement & Amalgamation
6	Prevention of Oppression & Mismanagement
7	Winding Up
8	Miscellaneous Provisions
9	Adjudication, Special Courts, National Company Law Tribunal
10	e-Filing
1.1	SEBI Act & SEBI Regulations
1	FEMA
2	FCRA
3	IBC

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Abridged prospectus	SEBI Reg.		**Regulation 131**	1.114	1.115
Acceptance of foreign contribution after obtaining prior permission of the Central Government	**FCRA**	**4**	Section 11	**2.18**	2.18
Accounts and audit	SEBI Act	12	**Section 15**	1.20	1.20
ACCOUNTS, INTIMATION, AUDIT AND DISPOSAL OF ASSETS, ETC.	FCRA	5		2.28	2.28
Acquisition and transfer of foreign securities by AD bank	FEMA	5		1.61	1.61
Acquisition and transfer of foreign securities by domestic depositor	FEMA	5		1.61	1.61
Acquisition of control	SEBI Reg.		**Regulation 4**	1.127	1.129
Acquisition or transfer by way of deferred payment	**FEMA**	**5**	**Regulation 7**	**1.65**	1.65
Act not to apply to certain Government transactions.	FCRA	9	Section 51	2.38	2.38
Action in respect of article, currency or security received in contravention of Act	FCRA	3 V		2.17	2.17
Action to be taken by Tribunal after passing of winding up order	**Ch 7**	**17**	**Section 285**	**7.18**	7.18
ACTIONS TO BE TAKEN IN PURSUANCE OF INSPECTOR'S REPORT	**Ch 4**	**18**	**Section 224**	**4.31**	4.30
Additional conditions for an offer for sale	SEBI Reg.	5	**Regulation 8**	1.78	1.78
Additional conditions for an offer for sale	SEBI Reg.		**Regulation 105**	1.99	1.99
Additional conditions for an offer for sale for issues under sub-regulation (2) of regulation 6	SEBI Reg.	6	**Regulation 8A**	1.79	1.79
Additional director	**Ch 1**	**7**	**Section 161**	**1.23**	1.23
Additional functions of SEBI under the Securities Contracts (Regulation) Act, 1956:	SEBI Act	4	**Section 11**	1.10	1.10
Additional requirements for issue of convertible debt instruments	**SEBI Reg.**	**2**	**Regulation 10**	**1.79**	1.80
Additional requirements for issue of convertible debt instruments	SEBI Reg.		**Regulation 107**	1.100	1.100
Additional written notice by the Registra	Ch 4	2	Section 206	4.04	4.04
ADJUDICATION	FCRA	6		2.31	2.31
ADJUDICATION AND APPEAL	FEMA	9		1.84	1.85
Adjudication of confiscation.	FCRA	6	Section 29	2.32	2.32
ADJUDICATION OF PENALTIES.	Ch 9	14	Section 454	9.22	9.22
Adjudication: Admission or Rejection of Application	IBC	3 VI	Section 11A	3.35	3.35
ADJUSTMENT OF RIGHTS OF CONTRIBUTORIES.	Ch 7	28	Section 297	7.28	7.28
Administrative Expenses	**FCRA**	**3 V**		**2.15**	2.15
Admission of application	Ch 6	6	Section 245	6.18	6.18
Admission/rejection of application	IBC	3 IIC(3)	Section 10	3.33	3.33
Advance payment against exports	**FEMA**	**5 (15)**	**Regulation 15**	**1.76**	1.76
Advertisement of notice	**Ch 5**	**2**	**Section 230**	**5.09**	5.09
Advise Mr. Manoj about the above issues and if any non-compliances have been done, what are the relevant remedies available	**Ch 10**	**8**	**Case Study**	**10.53**	10.53
ADVISORY COMMITTEE.	Ch 7	19	Section 287	7.19	7.19
After Committee of Creditors is formed	IBC	3 IX(2)	Section 12A	3.37	3.37
Aggrieved person to apply to Tribunal against decision of Company Liquidator	Ch 7	23	Section 292	7.25	7.25
Aggrieved person to file an appeal against the order of registrar	**Ch 8**	**3 V**	**Section 252**	**8.17**	8.17
All-in-cost	**FEMA**	**5**	Meaning	1.32	1.32
Allocation in the net offer	SEBI Reg.		**Regulation 129**	1.111	1.112
Allotment of Director Identification Number (DIN):	Ch 1	3	Section 152	1.06	1.06
Allotment procedure and basis of allotment	SEBI Reg.		**Regulation 145**	1.118	1.119
Allotment procedure and basis of allotment	SEBI Reg.		**Regulation 49**	1.92	1.92
Allotment, refund and payment of interest	SEBI Reg.		**Regulation 146**	1.118	1.119
Allotment, refund and payment of interest	SEBI Reg.		**Regulation 50**	1.93	1.93

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Alteration in Memorandum or Articles through order of Tribunal:	Ch 6	4	Section 242	6.12	6.12
Alteration of rights of holders of specified securities	SEBI Reg.		**Regulation 58**	1.96	1.97
Altered provision shall apply:	Ch 6	4	Section 242	6.12	6.12
Alternate Director	**Ch 1**	**7**	**Section 161**	**1.24**	1.24
Alternate Director - Term of office of Alternate Director	**Ch 1**	**7**	**Section 161**	**1.25**	1.25
Amalgamation	Ch 5	1	Meaning	5.02	5.02
Amalgamation in the Nature of Merger	Ch 5	1	Basics	5.03	5.03
Amalgamation in the Nature of Purchase	Ch 5	1	Basics	5.04	5.04
Amendment in order	**Ch 9**	**2**	**Section 420**	**9.04**	9.04
Annexure with Notice	**Ch 5**	**2**	**Section 230**	**5.09**	5.09
ANNUAL / YEARLY COMPLIANCES	SEBI Reg.	7		1.60	**1.62**
ANNUAL FEE PAYABLE BY A DORMANT COMPANY UNDER SUB-SECTION (5) OF SECTION 455	Ch 10	III	Rule 12	10.41	10.41
Annual filing	Ch 10	2	Form	10.29	10.29
Annual Performance Report	FEMA	5	Regulation 10	1.67	1.67
Annual Report	SEBI Reg.	7	**Regulation 34**	1.60	**1.62**
Annual reports on Government companies.	**Ch 8**	**4 I**	**Section 394**	**8.19**	8.19
Annual reports where one or more State Government are member of company	Ch 8	4 II	Section 395	8.20	8.20
Any person is a financial creditor as well as an operational creditor	IBC	3 XIII	Section 21	3.47	3.47
APPEAL & REVISION	FCRA	7		2.32	2.33
APPEAL AGAINST ACQUITTAL.	Ch 9	9	Section 444	9.21	9.21
Appeal against Approval of Resolution Plan	IBC	3 XV	Section 61	3.61	3.61
Appeal against the order of the Registrar [Sub-section (2)]:	Ch 5	8	Section 238	5.29	5.29
Appeal and revision	SEBI Act	15	**Section 26C**	1.43	1.43
Appeal and revision.	Ch 9	3	Section 437	9.14	9.14
Appeal by aggrieved person on assessment of compensation	Ch 5	7	Section 237	5.28	5.28
Appeal from orders of Tribunal.	Ch 9	2	Section 421	9.05	9.05
Appeal to Appellate Tribunal.	FEMA	9	Section 19	1.85	1.86
Appeal to AT	Ch 9	2	Section 421	9.05	9.05
Appeal to High Court.	FEMA	9	Section 35	1.86	1.87
Appeal to Special Director (Appeals).	FEMA	9	Section 17	1.85	1.86
Appeal to Supreme Court	SEBI Act	14	**Section 15Z**	1.39	1.39
Appeal to Supreme Court.	Ch 9	2	Section 423	9.07	9.07
Appeal to the Securities Appellate Tribunal	SEBI Act	14	**Section 15T**	1.36	1.36
Appeal to Tribunal.	**Ch 8**	**3 V**	**Section 252**	**8.17**	8.17
Appeal.	FCRA	7	Section 31	2.32	2.33
Appeals	SEBI Act	15	**Section 20**	1.40	1.40
Appeals and Appellate Authority.	IBC	3 XV	Section 61	3.61	3.61

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
APPEALS FROM ORDERS MADE BEFORE COMMENCEMENT OF ACT.	Ch 7	34	Section 303	7.33	7.33
Appellate Tribunal.	FEMA	9	Section 18	1.85	1.86
Applicability of Section 188 to Corporate Restructuring, Amalgamations etc.	Ch 3	17	Section 188	3.63	3.63
Applicability of the provisions	Ch 5	11	Section 233	5.35	5.35
Applicability of the provisions of the Code of Criminal Procedure, 1973	Ch 4	5	Section 209	4.10	4.10
APPLICABILITY OF THE REGULATIONS	SEBI Reg.		**Regulation 3**	1.72	1.72
Applicant to pay security	**Ch 4**	**6**	**Rule 5**	**4.12**	4.12
Application and minimum application value	SEBI Reg.		**Regulation 143**	1.117	1.118
Application and minimum application value	SEBI Reg.		**Regulation 47**	1.91	1.92
Application by dissenting shareholders	**Ch 5**	**5**	**Section 235**	**5.21**	5.21
Application filed is found to be frivolous/vexatious	Ch 6	6	Section 245	6.19	6.19
Application for initiation of Corporate Insolvency Resolution Process by operational creditor after issue of demand notice	**IBC**	**3 IIB(2)**	**Section 9**	**3.30**	3.30
Application for seeking status of an active company	Ch 8	6 III	Rule 8	8.35	8.35
Application may be filed on behalf of affected persons	Ch 6	6	Section 245	6.19	6.19
APPLICATION OF CERTAIN PROVISIONS TO PROCEEDINGS UNDER SECTION 241 OR SECTION 245	Ch 6	7	Section 246	6.19	6.19
Application of Code	IBC	1	Section 2	3.10	3.10
Application of Code to proceedings before Special Court	SEBI Act	15	**Section 26D.**	1.44	1.44
Application of Code to proceedings before Special Court.	Ch 9	3	Section 438	9.15	9.15
APPLICATION OF FINES.	Ch 9	11	Section 446	9.21	9.21
Application of other laws not barred	SEBI Act	15	**Section 32**	1.48	1.49
Application of other laws not barred.	FCRA	9	Section 52	2.38	2.38
APPLICATION OF PROVISIONS OF INFORMATION TECHNOLOGY ACT, 2000	Ch 10	5	Section 402	10.31	10.31
Application of the provisions to the Government Company in liquidation	Ch 8	4 II	Section 395	8.21	8.21
Application of this Part.	IBC	3	Section 4	3.21	3.21
Application to National Company Law Tribunal	IBC	3 I	Section 4	3.23	3.23
Application to Registrar by a person claiming to be entitled to any money paid into Company Liquidation Dividend and Undistributed Assets Account	**Ch 7**	**51**	**Section 352**	**7.50**	7.50
Application to Tribunal	Ch 7	41	Section 331	7.41	7.41
Application to Tribunal by aggrieved party	**Ch 5**	**2**	**Section 230**	**5.12**	5.12
APPLICATION TO TRIBUNAL FOR RELIEF IN CASES OF OPPRESSION, ETC.	**Ch 6**	**2**	**Section 241**	**6.05**	6.05
APPOINTMENT OF ADDITIONAL DIRECTOR, ALTERNATE DIRECTOR, A DIRECTOR TO FILL CASUAL VACANCY AND NOMINEE DIRECTOR	**Ch 1**	**7**	**Section 161**	**1.23**	1.23
Appointment of Adjudicating Authority.	FEMA	9	Section 16	1.85	1.85
Appointment of Adjudicating officers:	Ch 9	14	Rule 3(i)	9.22	9.22
Appointment of authorized person	FEMA	6		1.78	1.79
APPOINTMENT OF DIRECTOR ELECTED BY SMALL SHAREHOLDERS	**Ch 1**	**6**	**Section 151**	**1.21**	1.21
Appointment of Director in SFIO	Ch 4	7	Section 211	4.14	4.13
APPOINTMENT OF DIRECTORS	Ch 1	3	Section 152	1.06	1.06
APPOINTMENT OF DIRECTORS TO BE VOTED INDIVIDUALLY	Ch 1	8	Section 162	1.29	1.28
Appointment of Experts Officers & Employees in SFIO	Ch 4	7	Section 211	4.14	4.13
Appointment of first directors.	**Ch 1**	**3**	**Section 152**	**1.06**	1.06
Appointment of inspectors	**Ch 4**	**6**	**Section 210**	**4.12**	**4.11**
Appointment of inspectors by CG	Ch 4	12	Section 216	4.21	4.20

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Appointment of inspectors by CG where Tribunal directs for investigation	Ch 4	12	Section 216	4.21	4.20
Appointment of IRP	IBC	3 IIB(3)	Section 9	3.31	3.31
Appointment of judicial member	SEBI Act	14	**Section 15MA**	1.33	1.33
APPOINTMENT OF KEY MANAGERIAL PERSONNEL	Ch 2	3	Section 203	2.09	2.09
Appointment of Key Managerial Personnel in the prescribed companies	Ch 2	3	Rule 8 & 8A	2.09	2.09
Appointment of KMP - Conditions for Appointment	Ch 2	3	Section 203	2.11	2.11
Appointment of KMP - Filling of Vacancy of Key Managerial Personnel	**Ch 2**	**3**	**Section 203**	**2.11**	**2.12**
Appointment of KMP - Managing Director or Manager in more than one company	**Ch 2**	**3**	**Section 203**	**2.11**	2.11
Appointment of KMP - Penalty for non-compliance	Ch 2	3	Section 203	2.12	2.12
Appointment of KMP - Prohibition on individual to be appointed as Chairperson as well as Managing Director or Chief Executive Officer at the same time	**Ch 2**	**3**	**Section 203**	**2.09**	**2.10**
APPOINTMENT OF MANAGING DIRECTOR, WHOLE TIME DIRECTOR OR MANAGER	**Ch 2**	**2**	**Section 196**	**2.04**	2.04
Appointment of MD/WTD/Manger - Eligibility Conditions for Appointment	**Ch 2**	**2**	**Section 196**	**2.04**	**2.05**
Appointment of MD/WTD/Manger - Procedure of Appointment	**Ch 2**	**2**	**Section 196**	**2.07**	2.07
Appointment of MD/WTD/Manger - Tenure	**Ch 2**	**2**	**Section 196**	**2.04**	2.04
Appointment of MD/WTD/Manger - Validity of Acts	**Ch 2**	**2**	**Section 196**	**2.08**	2.08
Appointment of non-rotational directors:	**Ch 1**	**3**	**Section 152**	**1.08**	1.08
Appointment of official liquidator	Ch 7	7	Section 275	7.08	7.08
Appointment of Provisional Liquidator as the Company Liquidator	Ch 7	7	Section 275	7.09	7.09
Appointment of Provisional Liquidator or the Company Liquidator by Tribunal:	Ch 7	7	Section 275	7.08	7.08
Appointment of Rotational director & no. of directors liable to retire by rotation:	**Ch 1**	**3**	**Section 152**	**1.08**	1.08
Appointment of subsequesnt directors.	**Ch 1**	**3**	**Section 152**	**1.06**	1.06
Appointment of technical member	SEBI Act	14	**Section 15MB**	1.33	1.33
Appointment, qualification and the other terms and conditions of service of the Presiding Officer and other Members of the Appellate Tribunal to be governed by Finance Act, 2017	SEBI Act	14	**Section 15QA**	1.35	1.35
Approval for related party transactions	SEBI Reg.	8		1.61	**1.62**
Approval of Appointment in general meeting:	Ch 1	13	Rule 6	1.46	1.46
Approval of regulatory body, in case of a company regulated under special Act	**Ch 8**	**3 I**	**Section 248**	**8.14**	8.14
Approval of resolution plan.	**IBC**	**3 XV**	**Section 31**	**3.59**	3.59
Approval or Rejection of scheme	Ch 5	11	Section 233	5.33	5.33
Approval Services (Headquarters)	Ch 10	2	Form	10.25	10.25
Approval Services (Regional Director)	Ch 10	2	Form	10.25	10.25
Approval Services (Registrar of Companies)	Ch 10	2	Form	10.26	10.26
Areas in which winding up committee to assist & monitor liquidation functions	Ch 7	9	Section 277	7.11	7.11
Arm's Length transaction - meaning	**Ch 3**	**17**	**Section 188**	**3.58**	3.58
Arrangement	Ch 5	1	Meaning	5.02	5.02
ARREST OF PERSON TRYING TO LEAVE INDIA OR ABSCOND.	Ch 7	32	Section 301	7.31	7.31
As the default was admitted by the company and its directors before the Adjudicating Authority and by doing good the non-compliance, will this release them from the liability of non-compliance?	**Ch 10**	**8**	**Case Study**	**10.55**	10.55
Assigning of investigation to SFIO by CG	Ch 4	8	Section 212	4.15	4.15
Attaching of Notice with the Application	Ch 2	9	Section 201	2.32	2.32
Attachments	Ch 10	2	Form	10.30	10.30
Attending of general meetings	Ch 3	6A	Section 178	3.25	3.25

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Attending of meeting by resolution applicant:	IBC	3 XV	Section 30	3.58	3.58
AUDIT COMMITTEE	**Ch 3**	**5A**	**Section 177**	**3.17**	3.17
Audit Committee	SEBI Reg.	9A	**Regulation 18**	1.65	**1.67**
Audit Committee - Companies not required constituting an Audit Committee	**Ch 3**	**5A**	**Section 177**	**3.17**	3.17
Audit Committee - Companies required to constitute an Audit Committee	**Ch 3**	**5A**	**Section 177**	**3.17**	3.17
Audit Committee - Composition of an Audit committee	**Ch 3**	**5A**	**Section 177**	**3.17**	3.18
Audit Committee - Disclosure of composition of Audit Committee	**Ch 3**	**5A**	**Section 177**	**3.18**	3.18
Audit Committee - If no approval accorded:	Ch 3	5A	Section 177	3.20	3.20
Audit Committee - Responsibilities of the Audit Committee	**Ch 3**	**5A**	**Section 177**	**3.18**	3.18
Audit Committee - Right to be heard before the Audit Committee	Ch 3	5A	Section 177	3.21	3.21
Audit Committee - Rights of the Audit Committee	Ch 3	5A	Section 177	3.21	3.21
Audit Committee - Voidable transaction	Ch 3	5A	Section 177	3.20	3.20
Audit Committee - When a company ceases to constitute an Audit Committee:	**Ch 3**	**5A**	**Section 177**	**3.17**	3.18
AUDIT COMMITTEE, VIGIL MECHANISM AND PUNISHMENT	Ch 3	5	Section 177	3.17	3.17
Audit of accounts.	FCRA	5	Section 20	2.30	2.30
AUDIT OF COMPANY LIQUIDATOR'S ACCOUNTS.	Ch 7	25	Section 294	7.26	7.26
Authentication of Documents	Ch 10	2	Rule 8	10.07	10.07
Authentication of report	Ch 4	17	Section 223	4.31	4.29
Authorised person.	FEMA	6	Section 10	1.78	1.78
Authorised representative - Rights	IBC	3 XIII	Section 21	3.48	3.49
Authorised Representative from the State or Union Territory having highest number of creditors in class	IBC	3 XIII	Section 21	3.48	3.48
Authority to whom declaration is to be furnished and the manner of dealing with the declaration:	FEMA	5 (6)	Regulation 6	1.72	1.72
Availability of issue material	SEBI Reg.		**Regulation 133**	1.114	1.115

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Bank account - open one or more accounts in one or more banks for the purpose of utilising the foreign contribution	FCRA	4		2.19	2.19
BANKERS NOT TO DISCLOSE CERTAIN INFORMATION	**Ch 4**	**21**	**Section 227**	**4.34**	4.33
Bankruptcy	IBC	1	Basics	3.03	3.03
Bar of jurisdiction	SEBI Act	15	**Section 20A**	1.41	1.41
Bar of legal proceedings.	FEMA	9	Section 44	1.87	1.90
Bar on prosecution of offences under the Act.	FCRA	8	Section 40	2.36	2.37
Bar to filing of suits and legal proceedings	IBC	4	Section 33	3.64	3.64
Basic requirements as to acquisition of shares	**Ch 5**	**5**	**Section 235**	**5.20**	5.20
Before formation of Committee of Creditors	IBC	3 IX(1)	Section 12A	3.37	3.37
Binding order of Tribunal	**Ch 5**	**2**	**Section 230**	**5.11**	5.11
Board are vested with same power as that of civil court:	SEBI Act	4	**Section 11**	1.07	1.07
Board Meeting - Audio-visual means - essentials	Ch 3	2	Section 173	3.04	3.04
Board Meeting - Exemptions to Certain Companies	Ch 3	2	Section 173	3.03	3.03
Board Meeting - Frequency of Board Meetings (First & Subsequent)	**Ch 3**	**2**	**Section 173**	**3.02**	3.02
Board Meeting - Means to attend Board Meetings	Ch 3	2	Section 173	3.04	3.04
Board Meeting - MEETINGS OF BOARD	Ch 3	2	Section 173	3.02	3.02
Board Meeting - Notice of the Board meeting	**Ch 3**	**2**	**Section 173**	**3.09**	3.09
Board Meeting - Participation by Directors in Board Meetings	Ch 3	2	Section 173	3.04	3.04
Board Meeting - Penalty for failure to give notice	Ch 3	2	Section 173	3.10	3.10
Board Meeting - Requirement of attending all the Board Meeting	**Ch 3**	**2**	**Section 173+167**	**3.09**	3.09
Board Meeting - Video conferencing or other audio-visual means	Ch 3	2	Section 173	3.04	3.04
Board Meeting - Video conferencing or other audio-visual means - Procedural points relating to meetings of Board that are held through video conferencing or other audio-visual means	**Ch 3**	**2**	**Section 173**	**3.04**	3.04
Board of Directors	**SEBI Reg.**	**3**	**Regulation 17**	**1.51**	**1.52**
Board to regulate or prohibit issue of prospectus, offer document or advertisement soliciting money for issue of securities	SEBI Act	5	**Section 11A**	1.12	1.12
Bonus issue	SEBI Reg.			1.71	1.71
BOOKS AND PAPERS OF COMPANY TO BE EVIDENCE.	Ch 7	48	Section 345	7.48	7.48
BOOKS TO BE KEPT BY COMPANY LIQUIDATOR.	Ch 7	24	Section 293	7.25	7.25
Brief process flow of submission to the SEBI	SEBI Reg.		**Regulation 7B**	1.147	1.152

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Cancellation - Cooling period of three years	FCRA	4		2.24	2.24
Cancellation - Grounds for Cancellation of certificate	FCRA	4		2.24	2.24
Cancellation of certificate.	FCRA	4	Section 14	2.24	2.24
Capital account transactions	FEMA	3	Definition	1.04	1.04
Capital account transactions - Prohibited Transactions	**FEMA**	**5**		**1.30**	1.30
Capital account transactions - SCHEDULE I - permissible transactions by persons resident in India	FEMA	5		1.29	1.29
Capital account transactions - SCHEDULE II - permissible transactions by persons resident outside India	FEMA	5		1.29	1.29
Capital account transactions - Transactions with no restriction	FEMA	5		1.30	1.30
Capital account transactions.	FEMA	5	Section 6	1.25	1.25
CASE STUDIES RELATING TO ETHICS	**Ch 10**	**8**	**Case Study**	**10.45**	10.45
Cast of vote by authorized representative	IBC	3 XIII	Section 25A	3.53	3.53
Casual Vacancy	**Ch 1**	**7**	**Section 161**	**1.27**	1.27
Casual Vacancy - Term of office of Alternate Director	Ch 1	7	Section 162	1.28	1.28
Cease and desist proceedings	SEBI Act	9	**Section 11D**	1.17	1.17
Central Government may apply suo moto to the Tribunal:	Ch 6	2	Section 241	6.07	6.07
Central Government may by order provide for amalgamation in public interest	Ch 5	7	Section 237	5.27	5.27
CERTAIN ATTACHMENTS, EXECUTIONS, ETC., IN WINDING UP BY TRIBUNAL TO BE VOID.	**Ch 7**	**45**	**Section 335**	**7.44**	7.44
Certain Exports requiring prior approval	FEMA	5 (13)	Regulation 13	1.75	1.75
CERTAIN TRANSFERS TO BE VOID.	Ch 7	40	Section 330	7.40	7.40
CG may direct SFIO to initiate prosecution	Ch 4	8	Section 212	4.18	4.17
Change Services	Ch 10	2	Form	10.26	10.26
Charge Related Forms	Ch 10	2	Form	10.27	10.27
Charitable Contribution	**Ch 3**	**9**	**Section 181**	**3.35**	3.35
Chief Executive Officer	Ch 2	1	Section 2(18)	2.02	2.02
Chief Financial Officer	Ch 2	1	Section 2(19)	2.02	2.02
Circulation of information for the meeting by the merging companies / the companies in respect of which a division is proposed	Ch 5	4	Section 232	5.15	5.15
Circumstances for seizure	Ch 4	5	Section 209	4.10	4.10
CIRCUMSTANCES IN WHICH COMPANY MAY BE WOUND UP BY TRIBUNAL.	**Ch 7**	**3**	**Section 271**	**7.02**	7.02
Civil Court not to have jurisdiction	SEBI Act	14	**Section 15Y**	1.38	1.38
Civil court not to have jurisdiction.	Ch 9	2	Section 430	9.10	9.10
CLASS ACTION	Ch 6	6	Section 245	6.15	6.15
Classifications of issues	SEBI Reg.			1.70	1.70
Code of Conduct	SEBI Reg.		**Regulation 9**	1.148	1.153
Code of Fair Disclosure	SEBI Reg.		**Regulation 8**	1.147	1.152
Cognizance of offence by Tribunal	Ch 4	9	Section 213	4.19	4.18
Cognizance of offences by Courts 26A.	SEBI Act	15	**Section 26**	1.43	1.43
Collective body of the directors	Ch 1	1	Basics	1.02	1.02
Collective investment scheme	SEBI Act	6	**Section 11AA**	1.12	1.12
Commencement of corporate insolvency resolution process	IBC	3 IIA(5)	Section 7	3.27	3.27
Commencement of insolvency resolution process	IBC	3 IIC(4)	Section 10	3.33	3.33
Commencement of insolvency resolution process:	IBC	3 IIB(6)	Section 9	3.32	3.32
COMMENCEMENT OF WINDING UP BY TRIBUNAL.	Ch 7	56	Section 357	7.54	7.54
Commission of default	**IBC**	**3 IIC(1)**	**Section 10**	**3.32**	3.32

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Committee of creditors - Approval of committee of creditors for certain actions.	IBC	3 XIII	Section 28	3.51	3.51
Committee of creditors - Composition	IBC	3 XIII	Section 24	3.49	3.49
Committee of creditors - Filing of report certifying constitution of the committee	IBC	3 XIII	Regulation 17	3.50	3.50
Committee of creditors - First Meeting of Creditors	**IBC**	**3 XIII**	**Regulation 17**	**3.50**	3.50
Committee of creditors - Meeting of committee of creditors.	IBC	3 XIII	Section 24	3.49	3.49
Committee of creditors - Meetings of the committee	IBC	3 XIII	Regulation 18	3.50	3.50
Committee of creditors - Notice for meetings of the committee	IBC	3 XIII	Regulation 19	3.50	3.50
Committee of creditors - Procedure for conduct of meeting of CoC	IBC	3 XIII	Regulation 16(3)	3.49	3.49
Committee of creditors - Quorum for the Meeting	**IBC**	**3 XIII**	**Regulation 22**	**3.51**	3.51
Committee of creditors - Voting by the committee	IBC	3 XIII	Regulation 25	3.52	3.52
Committee of creditors.	IBC	3 XIII	Section 21	3.46	3.47
COMMON OBLIGATIONS OF LISTED ENTITIES	SEBI Reg.	4		1.56	**1.58**
Communication of order to Registrar	Ch 5	11	Section 233	5.33	5.33
Communication of Order:	IBC	3 IIA(6)	Section 7	3.27	3.27
Communication or procurement of unpublished price sensitive information (UPSI)	SEBI Reg.		**Regulation 3**	1.138	1.141
Companies (Adjudication of Penalties) Rules, 2014]	Ch 9	14	Rule 3	9.22	9.22
COMPANIES (REGISTERED VALUERS AND VALUATION) RULES, 2017	Ch 8	2	Rule	8.03	8.03
Companies who may enter into scheme of merger or amalgamation	Ch 5	11	Section 233	5.32	5.32
Company enters into transaction with related party, agenda of Board meeting at which resolution is proposed to be moved shall disclose following matters	**Ch 3**	**17**	**Rule 15 (1)**	**3.58**	3.58
COMPANY LIQUIDATION DIVIDEND AND UNDISTRIBUTED ASSETS ACCOUNT.	**Ch 7**	**51**	**Section 352**	**7.49**	7.49
Company liquidator may appoint one/more professionals, if permitted by Tribunal:	Ch 7	22	Section 291	7.24	7.24
Company Liquidator to be Chairperson	Ch 7	19	Section 287	7.20	7.20
Company Liquidator to follow direction in administration & distribution of asset	Ch 7	23	Section 292	7.24	7.24
Company Liquidator to include in his Report manner of formation of company and commission of any fraud in formation, etc	Ch 7	13	Section 281	7.15	7.15
Company Liquidator to make good the default within the specified time	Ch 7	52	Section 353	7.52	7.52
Company liquidator to prepare draft final report	Ch 7	9	Section 277	7.12	7.12
COMPANY LIQUIDATORS AND THEIR APPOINTMENTS.	Ch 7	7	Section 275	7.08	7.08
COMPANY SECRETARY - FUNCTIONS OF COMPANY SECRETARY	Ch 2	4	Section 205	2.13	2.13
COMPANY SECRETARY - No effect on duties and functions of certain important functionaries	**Ch 2**	**4**	**Section 205**	**2.14**	2.14
COMPANY TO CONTRIBUTE TO BONA FIDE AND CHARITABLE FUNDS, ETC	**Ch 3**	**9**	**Section 181**	**3.35**	3.35
COMPANY TO FIX LIMIT WITH REGARD TO REMUNERATION	Ch 2	5	Section 200	2.14	2.14
Company to have Board of Directors	**Ch 1**	**2**	**Section 149**	**1.03**	1.03
Company whose shares are being transferred to act as a transfer agent in the event of purchase	**Ch 5**	**6**	**Section 236**	**5.24**	5.24
Company whose shares are being transferred to issue shares	**Ch 5**	**6**	**Section 236**	**5.24**	5.24
Compensation - Calculation of compensation:	**Ch 2**	**10**	**Section 202**	**2.32**	**2.34**
Compensation - No compensation if company is being wound up:	**Ch 2**	**10**	**Section 202**	**2.32**	**2.34**
COMPENSATION FOR ACCUSATION WITHOUT REASONABLE CAUSE.	Ch 9	10	Section 445	9.21	9.21
COMPENSATION FOR LOSS OF OFFICE OF MANAGING OR WHOLE-TIME DIRECTOR OR MANAGER	**Ch 2**	**10**	**Section 202**	**2.32**	2.32
Complete reports and action taken to be laid before the Parliament	SEBI Act	15	**Section 17**	1.40	1.40
Compliance officer and his/her obligation	SEBI Reg.	4	**Regulation 6**	1.56	**1.58**

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Compliance Related Filing	Ch 10	2	Form	10.28	10.28
Compliance Report on Corporate Governance	**SEBI Reg.**	**8**		**1.61**	**1.62**
Composite issue	**SEBI Reg.**			**1.70**	1.71
Composition of Advisory Committee	Ch 7	19	Section 287	7.19	7.19
Composition of certain offences	SEBI Act	15	**Section 24A**	1.42	1.42
Composition of certain offences.	FCRA	8	Section 41	2.36	2.37
Composition of Securities Appellate Tribunal	SEBI Act	14	**Section 15L**	1.32	1.32
Composition of SFIO	Ch 4	7	Section 211	4.13	4.13
Compounding of certain offences.	**Ch 9**	**5**	**Section 441**	**9.16**	9.16
COMPOUNDING OF OFFENCES	FEMA	8		1.84	1.84
Compromise in relation to buy-back of securities	**Ch 5**	**2**	**Section 230**	**5.12**	5.12
Compromise'	Ch 5	1	Meaning	5.02	5.02
Concept of Insolvency and Bankruptcy	IBC	1	Basics	3.02	3.02
Conditions to be met for the grant of registration and prior permission	FCRA	4		2.20	2.20
Conduct investigation into affairs of related companies, etc	Ch 4	15 (1)	Section 219	4.27	4.26
CONDUCT OF INSPECTION AND INQUIRY	Ch 4	3	Section 207	4.07	4.07
Conducting of meeting for choosing members of Advisory Committee	Ch 7	19	Section 287	7.20	7.20
Confiscation of article or currency or security obtained in contravention of Act.	FCRA	6	Section 28	2.32	2.32
Consequence of termination or modifications of certain agreements by an order passed by the Tribunal	Ch 6	5	Section 243	6.14	6.14
Consequences of approval:	IBC	3 XV	**Section 31**	3.60	3.60
Consequences of non-submission of a Resolution Plan:	IBC	3 XV	Section 61	3.62	3.62
CONSEQUENCES OF TERMINATION OR MODIFICATION OF CERTAIN AGREEMENTS	Ch 6	5	Section 243	6.14	6.14
Consideration to following factors while levying penalty	Ch 9	14	Rule 3(xii)	9.24	9.25
Consortium arrangement of FC	**IBC**	**3 XIII**	**Section 21**	**3.47**	3.47
Constitution of CoC	IBC	3 XIII	Section 21	3.46	3.47
Constitution of winding up committee to monitor liquidation proceedings	Ch 7	9	Section 277	7.11	7.11
Constitutional document	**IBC**	**3 IIC(1)**	**Section 10**	**3.32**	3.32
Contents of notice issued for approval of resolution	**Ch 3**	**21**	**Section 192**	**3.70**	**3.70**
Continuance of proceedings	SEBI Act	15	**Section 28B.**	1.46	1.46
Continuation of any legal proceedings by or against the transferee company	Ch 5	7	Section 237	5.27	5.27
Continuation of earlier SFIO	Ch 4	7	Section 211	4.13	4.12
CONTRACT OF EMPLOYMENT WITH MANAGING OR WHOLE- TIME DIRECTORS	Ch 3	19	Section 190	3.66	3.66
CONTRACTS BY ONE PERSON COMPANY (OPC)	Ch 3	22	Section 193	3.71	3.71
Contravention by companies.	FEMA	9	Section 42	1.87	1.89
Contravention by Liquidator	Ch 7	51	Section 352	7.51	7.51
Contravention of resolution plan as approved by the Adjudicating Authority	IBC	4	Section 33	3.64	3.64
Contravention of Section 232	Ch 5	4	Section 232	5.19	5.19
CONTRAVENTIONS AND PENALTIES IN BRIEF	FEMA	7		1.81	1.81
Conversion of optionally convertible debt instruments into equity share capital	SEBI Reg.		**Regulation 109**	1.101	1.102
Conversion of optionally convertible debt instruments into equity shares	SEBI Reg.	3	**Regulation 11**	1.80	1.81
Copies of every order to be laid in Parliament	Ch 5	7	Section 237	5.28	5.28
Copy of order to tribunal and parties to appeal:	Ch 9	2	Section 421	9.05	9.05
Copy of petition to be filed with Registrar	Ch 7	4	Section 272	7.05	7.05

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
CORPORATE GOVERNANCE	SEBI Reg.	8		1.61	**1.62**
Corporate Governance Report	**SEBI Reg.**	**3 I**		**1.54**	**1.55**
Corporate Governance Requirement with respect to Subsidiary Companies of Listed Company	**SEBI Reg.**	**3**	**Regulation 24**	**1.53**	**1.54**
CORPORATE INSOLVENCY RESOLUTION PROCESS	IBC	3		3.21	3.21
Cost to be borne by Company Liquidator	Ch 7	52	Section 353	7.52	7.52
COURT, TRIBUNAL OR PERSON, ETC. BEFORE WHOM AFFIDAVIT MAY BE SWORN	Ch 7	54	Section 355	7.53	7.53
Crediting sums realised by way of penalties to Consolidated Fund of India	SEBI Act	13	**Section 15JA**	1.31	1.31
Current account transactions	FEMA	3	Definition	1.04	1.04
Current account transactions	FEMA	5	Section 5	1.14	1.14
CUSTODY OF COMPANY'S PROPERTIES.	Ch 7	15	Section 283	7.16	7.16

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Data bank to contain list of willing persons who desire to act as ID	Ch 1	13	Rule 6	1.46	1.46
Date and sign on orde	Ch 9	14	Rule 3(viii)	9.24	9.24
Dealing in foreign exchange, etc.	FEMA	5	Section 3	1.12	1.12
Death or insolvency in certain cases.	FEMA	9	Section 43	1.87	1.89
Debt instruments and non-debt instruments	FEMA	5		1.50	1.49
DEBTS OF ALL DESCRIPTIONS TO BE ADMITTED TO PROOF.	Ch 7	35	Section 324	7.33	7.33
Debts to be discharged forthwith if assets are sufficient to meet them	**Ch 7**	**37**	**Section 327**	**7.37**	7.37
Debts to rank equally among themselves keeping in view the available assets	**Ch 7**	**37**	**Section 327**	**7.37**	7.37
Debts to which priority is given shall be a first charge on the goods or effects distrained on	**Ch 7**	**37**	**Section 327**	**7.38**	7.38
Declaration by ID	**Ch 1**	**12**	**Section 149**	**1.40**	1.40
Declaration in Form EDF	FEMA	5 (6)	Regulation 6	1.72	1.72
Declaration in Form SOFTEX	FEMA	5 (6)	Regulation 6	1.72	1.72
Declaration of exports	FEMA	5 (3)	Regulation 3	1.69	1.70
Declaration of moratorium and public announcement.	IBC	3 X	Section 13	3.37	3.38
Declaration of moratorium period	IBC	3 X(1)	Section 14	3.38	3.38
Deemed re-appointment of retiring Directors under certain circumstance	**Ch 1**	**3**	**Section 152**	**1.11**	1.11
DEFECTS IN APPOINTMENT OF DIRECTORS - Acts not valid if done after noticing his appointment to be invalid or to have terminated	Ch 3	13	Section 176	3.42	3.42
DEFECTS IN APPOINTMENT OF DIRECTORS - No act done by a person as a director shall be deemed to be invalid	Ch 3	13	Section 176	3.42	3.42
DEFECTS IN APPOINTMENT OF DIRECTORS - Protection to the acts of MD or WTD or Manager	Ch 3	13	Section 176	3.43	3.43
DEFECTS IN APPOINTMENT OF DIRECTORS NOT TO INVALIDATE ACTIONS TAKEN	Ch 3	13	Section 176	3.42	3.42
Define scope of investigation while appointing an inspector:	Ch 4	12	Section 216	4.21	4.20
Define the responsibility of the CFO of the Company in the given case	**Ch 10**	**8**	**Case Study**	**10.46**	10.46
Definitions	SEBI Act	2	**Section 2**	1.02	1.02
DEFINITIONS	SEBI Reg.		**Regulation 2**	1.136	1.137
Definitions	SEBI Reg.		**Regulation 2**	1.71	1.72
Definitions - OVERSEAS INVESTMENT RULES, 2022	FEMA	5		1.47	1.47
Definitions: Export of Goods and Services Regulations	FEMA	5 (2)		1.69	1.69
Definitions.	Ch 9	2	Section 407	9.03	9.03
Definitions.	FCRA	2	Section 2	2.04	2.04
Definitions.	FEMA	3	Section 2	1.04	1.04
Definitions.	IBC	2	Section 3	3.11	3.11
Definitions.	IBC	2	Section 5	3.16	3.16
Delay in Receipt of Payment	FEMA	5 (14)	Regulation 14	1.75	1.76
Delay in reporting - Overseas Investment	FEMA	5	Regulation 11	1.68	1.68
Delegation	SEBI Act	15	**Section 19**	1.40	1.40
Delegation of powers.	Ch 9	2	Section 426	9.09	9.09
Delegation of powers.	FCRA	9	Section 47	2.38	2.38
Demand Notice	**IBC**	**3 IIB(1)**	**Section 8**	**3.30**	3.30
Deposit of amount in separate bank account	**Ch 5**	**6**	**Section 236**	**5.24**	5.24
Deposit of security	Ch 7	6	Section 274	7.07	7.07
Determination of contravention of the provisions of the resolution plan	IBC	4	Section 33	3.64	3.64
Determination of price for purchase of minority shareholders	**Ch 5**	**6**	**Section 236**	**5.25**	5.25
Determination of rights and liabilities of fraudulently preferred persons	Ch 7	41	Section 331	7.40	7.40

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Different from Nominee Director	**Ch 1**	**12**	**Section 149**	**1.42**	1.42
Differential pricing	SEBI Reg.		**Regulation 128**	1.111	1.112
Differential pricing	SEBI Reg.		**Regulation 30**	1.90	1.91
Diminution	FEMA	5		1.54	1.54
DIN - Allotment of DIN	Ch 1	4	Section 154	1.13	1.13
DIN - Application for allotment of DIN before appointment	Ch 1	4	Section 153	1.12	1.12
DIN - Cancellation or Surrender or De-activation and Re-activation of DIN	Ch 1	4	Rule 11	1.17	1.17
DIN - Company to inform DIN to Registrar	Ch 1	4	Rule 10A	1.16	1.16
DIN - Company to inform DIN to Registrar	Ch 1	4	Section 157	1.16	1.16
DIN - DIRECTOR IDENTIFICATION NUMBER (DIN)	Ch 1	4	Section 153	1.12	1.12
DIN - Director Identification Number meaning	Ch 1	4	Section 153	1.12	1.12
DIN - Director to intimate DIN	Ch 1	4	Section 156	1.16	1.16
DIN - Intimation of Changes in Particulars specified in DIN Application	Ch 1	4	Rule 12	1.17	1.17
DIN - Non-applicability of Sections 152(6) and 152(7)	Ch 1	3	Section 152	1.12	1.12
DIN - Obligation to indicate DIN	Ch 1	4	Section 158	1.16	1.16
DIN - Procedure for making an application for allotment of DIN before appointment in an existing company	Ch 1	4	Rule 9	1.13	1.13
DIN - Procedure for rejection or allotment of DIN	Ch 1	4	Rule 10	1.13	1.13
DIN - Prohibition on obtaining more than one DIN	Ch 1	4	Section 155	1.15	1.15
DIN - Punishment for contravention of Sections 152, 155 and 156	Ch 1	4	Section 159	1.16	1.16
DIN - Punishment for failure to furnish the DIN to Registrar	Ch 1	4	Section 157	1.16	1.16
DIN - Requirement of DIN	Ch 1	4	Section 153	1.12	1.12
DIN related Forms	Ch 10	2	Form	10.26	10.26
DIRECTIONS FOR FILING STATEMENT OF AFFAIRS.	Ch 7	6	Section 274	7.07	7.07
Directions given by creditors or contributories to override directions of Advisory Committee	Ch 7	23	Section 292	7.24	7.24
DIRECTIONS OF TRIBUNAL ON REPORT OF COMPANY LIQUIDATOR.	Ch 7	14	Section 282	7.15	7.15
Director Identification Number (DIN)	Ch 10	2	Section 398	10.09	10.09
DIRECTORATE OF ENFORCEMENT	FEMA	9		1.86	1.87
Directorate of Enforcement.	FEMA	9	Section 36	1.86	1.87
Directors and other officers to submit books of account completed and audited to the Liquidator	**Ch 7**	**6**	**Section 274**	**7.07**	7.07
Directors liable to retire by rotation	**Ch 1**	**3**	**Section 152**	**1.10**	1.10
Directors of the target company	**SEBI Reg.**		**Regulation 24**	**1.128**	1.129
Discharge of liability	Ch 7	30	Section 299	7.29	7.29
DISCLAIMER OF ONEROUS PROPERTY	**Ch 7**	**43**	**Section 333**	**7.41**	7.41
Disclosure of acquisition and disposal	SEBI Reg.		**Regulation 29**	1.133	1.134
Disclosure of conflict of interest	Ch 7	22	Section 291	7.24	7.24
Disclosure of encumbered shares	SEBI Reg.		**Regulation 31**	1.134	1.135
DISCLOSURE OF INTEREST BY DIRECTOR	Ch 3	12	Section 184	3.39	3.39
Disclosure to be made by a director or KMP [Section 189(2)]	Ch 3	18	Section 189	3.65	3.65
Disclosure-related provisions	SEBI Reg.		**Regulation 28**	1.133	1.134
Disclosures by certain persons	SEBI Reg.		**Regulation 7**	1.145	1.150
Disclosures by other connected persons	SEBI Reg.		**Regulation 7**	1.146	1.151
Disclosures by person who makes an application for compromise or arrangement	**Ch 5**	**2**	**Section 230**	**5.08**	5.08
DISCLOSURES IN AND FILING OF OFFER DOCUMENTS	SEBI Reg.			1.107	1.108

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
DISCLOSURES IN AND FILING OF OFFER DOCUMENTS	SEBI Reg.			1.86	1.87
Disclosures in the draft offer document and offer document	SEBI Reg.	1	**Regulation 24**	1.86	1.87
Disclosures in the draft offer document and the offer document	SEBI Reg.		**Regulation 122**	1.107	1.108
Disclosures of 'related party transactions' in Board's report	Ch 3	17	Section 188	3.63	3.63
DISCLOSURES OF SHAREHOLDING AND CONTROL	SEBI Reg.			1.133	1.134
DISCLOSURES OF TRADING BY INSIDERS	SEBI Reg.			1.145	1.150
Disposal of applications under section 54C and under section 7 or section 9	IBC	3 V	Section 11A	3.35	3.35
Disposal of assets created out of foreign contribution.	**FCRA**	**5**	**Section 22**	**2.31**	2.31
DISPOSAL OF BOOKS AND PAPERS OF COMPANY.	Ch 7	50	Section 347	7.48	7.48
Disqualification - Additional qualifications by private company	**Ch 1**	**10**	**Section 164**	**1.33**	**1.32**
Disqualification - Where a person is appointed as a director in a defaulted company:	**Ch 1**	**10**	**Section 164**	**1.32**	1.32
Disqualification as prescribed by Section 217	**Ch 1**	**10**	**Section 164**	**1.33**	1.33
DISQUALIFICATIONS FOR APPOINTMENT OF DIRECTOR	**Ch 1**	**10**	**Section 164**	**1.31**	1.31
Disqualifications which get attached to a person if he is or has been a director of a company which has committed default	**Ch 1**	**10**	**Section 164**	**1.32**	1.32
Disqualified to hold office:	Ch 6	5	Section 243	6.14	6.14
DISSOLUTION OF COMPANY BY TRIBUNAL.	Ch 7	33	Section 302	7.32	7.32
Dissolution of transferor company	Ch 5	11	Section 233	5.34	5.34
Dividend	SEBI Reg.	6	**Regulation 42(3)**	1.59	1.59
Documents & Information to Shareholders	SEBI Reg.	7	**Regulation 36(2)**	1.61	**1.62**
Dormant Co. - Application for Obtaining Status of Dormant Company	Ch 8	6 III	Rule 3	8.33	8.33
Dormant Co. - Certificate of status of dormant company	Ch 8	6 III	Section 455	8.33	8.34
Dormant Co. - Consequences of non-filing of annual returns or financial statements	Ch 8	6 III	Section 455	8.34	8.34
Dormant Co. - Directors of dormant company	Ch 8	6 III	Section 455	8.34	8.35
Dormant Co. - Register of dormant company	Ch 8	6 III	Section 455	8.33	8.34
Dormant Co. - Rotation of auditors	Ch 8	6 III	Section 455	8.34	8.35
Dormant company	**Ch 8**	**6 III**	**Section 455**	**8.32**	8.32
Draft offer document and offer document to be available to the public	SEBI Reg.	3	**Regulation 26**	1.88	1.89
Draft offer document and offer document to be available to the public	SEBI Reg.		**Regulation 124**	1.109	1.110
Due diligence to be exercised by the company	Ch 1	13	Rule 6	1.46	1.46
Duplicate Declaration Forms to be retained with Authorised Dealers	**FEMA**	**5 (6)**	**Regulation 6**	**1.72**	1.73
Duration of conditions after non-fulfilment of which no appointment req	**Ch 1**	**12**	**Section 149**	**1.35**	1.35
DUTIES OF DIRECTORS	Ch 1	14	Section 166	1.47	1.47
Duty of all officers and other employees and agents including former officers, employees and agents	Ch 4	13	Section 217	4.22	4.21
Duty of director, officer or employee	Ch 4	3	Section 207	4.07	4.07
Duty of resolution professional on submission of Resolution plan	IBC	3 XV	Section 30	3.57	3.57
Duty of the company and its officers	Ch 4	2	Section 206	4.03	4.03

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
e-Filing - Process Involved	Ch 10	2	Section 398	10.09	10.09
e-Filing - System Requirements	Ch 10	2	Section 398	10.09	10.09
E-filing facilities available at the MCA21 portal	Ch 10	1	MCA21	10.02	10.02
e-Forms	Ch 10	2	Section 398	10.08	10.08
ECB Framework - Additional Requirements	FEMA	5		1.43	1.43
ECB Framework - All-in-cost ceiling per annum	FEMA	5		1.35	1.35
ECB Framework - Approval route	**FEMA**	**5**		1.32	1.32
ECB Framework - Automatic route	**FEMA**	**5**		1.32	1.32
ECB Framework - Borrowing by Entities under Investigation	FEMA	5		1.45	1.45
ECB Framework - Cancellation of LRN	FEMA	5		1.40	1.40
ECB Framework - Change of currency of borrowing	FEMA	5		1.37	1.37
ECB Framework - Change of the AD Category I bank:	FEMA	5		1.40	1.40
ECB Framework - Changes in terms and conditions of ECB	FEMA	5		1.39	1.39
ECB Framework - Compliance with the guidelines:	FEMA	5		1.46	1.46
ECB Framework - Conversion of ECB into equity	FEMA	5		1.40	1.40
ECB Framework - Creation of Charge on Immovable Assets	FEMA	5		1.42	1.42
ECB Framework - Creation of Charge on Movable Assets	FEMA	5		1.42	1.42
ECB Framework - Creation of Charge over Financial Securities	FEMA	5		1.42	1.42
ECB Framework - Currency of borrowing	FEMA	5		1.32	1.32
ECB Framework - Dissemination of information	FEMA	5		1.46	1.46
ECB Framework - ECB by entities under restructuring/ ECB facility for refinancing stressed assets:	FEMA	5		1.45	1.45
ECB Framework - ECB facility for Oil Marketing Companies	**FEMA**	**5**		**1.43**	1.43
ECB Framework - ECB facility for Startups	**FEMA**	**5**		**1.44**	1.44
ECB Framework - Eligible borrowers	FEMA	5		1.33	1.33
ECB Framework - End-uses (Negative list)	FEMA	5		1.35	1.35
ECB Framework - Exchange rate	FEMA	5		1.35	1.35
ECB Framework - Forms of ECB	FEMA	5		1.32	1.32
ECB Framework - Hedging provision	FEMA	5		1.35	1.35
ECB Framework - Issuance of Guarantee, etc. by Indian banks and Financial Institutions:	FEMA	5		1.37	1.37
ECB Framework - Issue of Corporate or Personal Guarantee	FEMA	5		1.43	1.43
ECB Framework - Late Submission Fee (LSF) for delay in reporting:	FEMA	5		1.39	1.39
ECB Framework - Limit and leverage	FEMA	5		1.37	1.37
ECB Framework - Loan Registration Number (LRN)	FEMA	5		1.38	1.38
ECB Framework - Minimum Average Maturity Period (MAMP)	**FEMA**	**5**		**1.34**	1.34
ECB Framework - Monthly Reporting of actual transactions:	FEMA	5		1.39	1.39
ECB Framework - Other costs	FEMA	5		1.35	1.35
ECB Framework - Parking of ECB proceeds	FEMA	5		1.38	1.38
ECB Framework - Powers delegated to AD Category I banks to deal with ECB cases	FEMA	5		1.40	1.40
ECB Framework - Procedure of raising ECB	FEMA	5		1.38	1.38
ECB Framework - Recognised lenders	FEMA	5		1.33	1.33
ECB Framework - Refinancing of existing ECB	FEMA	5		1.40	1.40
ECB Framework - Reporting Requirements	FEMA	5		1.38	1.38
ECB Framework - Security for raising ECB	FEMA	5		1.41	1.41
ECB Framework - Special Dispensations	FEMA	5		1.43	1.43

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
ECB Framework - Standard Operating Procedure (SOP) for Untraceable Entities:	FEMA	5		1.39	1.39
Effect of an order of tribunal	Ch 5	4	Section 232	5.18	5.18
Effect of company notified as dissolved.	Ch 8	3 III	Section 250	8.17	8.17
EFFECT OF FLOATING CHARGE.	Ch 7	42	Section 332	7.41	7.41
Effect of merger and amalgamation on transferee company	Ch 5	11	Section 233	5.34	5.34
Effect of publication of notification of superseding the Board	SEBI Act	15	**Section 17**	1.40	1.40
Effect of registeration of scheme	Ch 5	11	Section 233	5.34	5.34
Effect of the order of moratorium	IBC	3 X(4)	Section 14	3.39	3.39
EFFECT OF WINDING UP ORDER.	Ch 7	10	Section 278	7.13	7.13
Effective date specified in scheme	Ch 5	4	Section 232	5.18	5.18
Electronic address	Ch 10	2	Section 398	10.09	10.09
ELECTRONIC FORM TO BE EXCLUSIVE, ALTERNATIVE OR IN ADDITION TO PHYSICAL FORM	Ch 10	3	Section 400	10.30	10.30
Eligibility of issuer to make FPO of convertible debt instruments	**SEBI Reg.**		**Regulation 106**	**1.100**	1.100
Eligibility requirements for an initial public offer	**SEBI Reg.**	**3**	**Regulation 6**	**1.74**	1.75
Eligibility requirements for further public offer	SEBI Reg.		**Regulation 103**	1.97	1.98
Eligibility requirements for issue of convertible debt instruments	**SEBI Reg.**	**1**	**Regulation 9**	**1.79**	1.80
Empowering other officers.	FEMA	9	Section 38	1.87	1.88
Enforcement of the orders of Adjudicating Authority. 14A. Power of recover arrears of penalty.	FEMA	7	Section 14	1.82	1.82
Entities not eligible to make a further public offer	**SEBI Reg.**		**Regulation 102**	**1.97**	1.98
Entities not eligible to make an initial public offer	**SEBI Reg.**	**2**	**Regulation 5**	**1.74**	1.74
Entitlement of Liquidator to secure receipt from scheduled bank for any money paid	**Ch 7**	**51**	**Section 352**	**7.50**	7.50
Entitlement to members to make an application	**Ch 6**	**3**	**Section 244**	**6.09**	6.09
Establishment and incorporation of Board	SEBI Act	3	**Section 3**	1.03	1.03
Establishment of Securities Appellate Tribunals	SEBI Act	14	**Section 15K**	1.32	1.32
ESTABLISHMENT OF SERIOUS FRAUD INVESTIGATION OFFICE	Ch 4	7	Section 211	4.13	4.13
Establishment of Special Courts	SEBI Act	15	**Section 26A**	1.43	1.43
Establishment of Special Courts.	**Ch 9**	**3**	**Section 435**	**9.12**	9.12
ESTABLISHMENT OF THE SECURITIES AND EXCHANGE BOARD OF INDIA	SEBI Act	3		1.03	1.03
ESTABLISHMENT, JURISDICTION, AUTHORITY AND PROCEDURE OF SECURITIES APPELLATE TRIBUNAL (SAT)	SEBI Act	14		1.32	1.32
Events triggering liquidation	IBC	4	Section 33	3.65	3.65
Evidence in support of declaration:	FEMA	5 (7)	Regulation 7	1.72	1.73
Examination of any person by Tribunal	Ch 7	30	Section 299	7.28	7.28
Examination on oath	Ch 4	13	Section 217	4.23	4.22
Exception - not apply to a private company.	Ch 3	19	Section 190	3.66	3.66
Exceptions - Non Applicab of Sec-223	Ch 4	17	Section 223	4.31	4.30
Exceptions [Section 189(5)]	Ch 3	18	Section 189	3.65	3.65
EXCLUSION OF CERTAIN TIME IN COMPUTING PERIOD OF LIMITATION.	Ch 7	57	Section 358	7.54	7.54
Executive Director	**Ch 1**	**2**	**Section 149**	**1.05**	1.05
Exempted classes of unlisted public companies	**Ch 1**	**12**	**Section 149**	**1.36**	1.36
Exemption	Ch 3	6	Section 178	3.26	3.26
Exemption	**Ch 3**	**8**	**Section 180**	**3.34**	3.34
Exemption for payment by International Credit Card while on a visit abroad	**FEMA**	**5**		**1.19**	1.19
Exemption for remittance from EEFC Account	**FEMA**	**5**		**1.19**	1.19

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Exemption for remittance from RFC Account	**FEMA**	**5**		**1.19**	1.19
Exemption from disclosure if the holding is up to two per cent	Ch 3	12	Section 184	3.42	3.42
Exemption from realisation and repatriation in certain cases.	FEMA	5	Section 9	1.77	1.78
Exemption to banking companies	Ch 3	7	Section 179	3.30	3.30
Exemption to banking company	Ch 6	6	Section 245	6.19	6.19
Exemption to section 8 companies - Removal of Co.	Ch 8	3 I	Section 248	8.14	8.14
Exemptions	**Ch 3**	**17**	**Section 188**	**3.61**	3.61
Exemptions - Investments by a company in its own name	**Ch 3**	**16**	**Section 187**	**3.54**	3.54
Exemptions -Export of Goods and Software without declaration	**FEMA**	**5 (4)**	**Regulation 4**	**1.70**	1.70
EXERCISE AND CONTROL OF COMPANY LIQUIDATOR'S POWERS.	Ch 7	23	Section 292	7.24	7.24
Existence of the liability	Ch 8	3 I	Section 248	8.14	8.14
Expeditious disposal by Tribunal and Appellate Tribunal.	Ch 9	2	Section 422	9.06	9.06
EXPENSES OF INVESTIGATION	Ch 4	19	Section 225	4.33	4.31
EXPENSES OF INVESTIGATION - Extent of liability	Ch 4	19	Section 225	4.34	4.32
EXPENSES OF INVESTIGATION - Reimbursement of expenses	Ch 4	19	Section 225	4.33	4.31
Explanatory Statement in case of appointment of Independent Director	Ch 1	3	Section 152	1.07	1.07
Export of goods and services.	FEMA	5	Section 7	1.68	1.69
Extensible Business Reporting Language (XBRL)	Ch 10	2	Section 398	10.12	10.12
Extensible Business Reporting Language (XBRL) - Benefits	Ch 10	2	Section 398	10.13	10.13
Extensible Business Reporting Language (XBRL) - Creation of Financial Statements	Ch 10	2	Section 398	10.22	10.22
Extensible Business Reporting Language (XBRL) - Meaning	Ch 10	2	Section 398	10.12	10.12
Extensible Business Reporting Language (XBRL) - Statutory Requirements:	Ch 10	2	Section 398	10.22	10.22
Extensible Business Reporting Language (XBRL) - Working	Ch 10	2	Section 398	10.13	10.13
Extension of the corporate insolvency resolution process period	**IBC**	**3 VII(2)**	**Section 12**	**3.35**	3.36
Extension of time for filing	**Ch 7**	**6**	**Section 274**	**7.07**	7.07

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Face value of equity shares	SEBI Reg.		**Regulation 125**	1.110	1.111
FACTORS FOR DETERMINING LEVEL OF PUNISHMENT	Ch 9	12	Section 446A	9.21	9.21
Factors to be taken into account by the Adjudicating Officer	SEBI Act	13	**Section 15J**	1.31	1.31
Failure /refusal to produce, furnish, appear and sign	Ch 4	13	Section 217	4.24	4.23
Failure of acquisition of shares	**Ch 5**	**6**	**Section 236**	**5.25**	5.25
Failure to be present before the adjudicating authority:	Ch 9	14	Rule 3(xi)	9.24	9.25
Failure to furnish information	Ch 4	2	Section 206	4.05	4.05
FAST TRACK MODE OF MERGER OR AMALGAMATION OF CERTAIN COMPANIES	**Ch 5**	**11**	**Section 233**	**5.30**	5.30
Fee (Additional) and higher additional fee (in certain cases) shall be applicable for delay in filing of forms other than for increase in Nominal Share Capital or forms under Section 92/137 of the Act or forms for filing charges	Ch 10	I B	Rule 12	10.37	10.37
FEE FOR FILING E- FORM DIR-3 KYC OR DIR 3 KYC –WEB UNDER RULE 12A OF THE COMPANIES (APPOINTMENT AND QUALIFICATION OF DIRECTORS) RULES, 2014	Ch 10	VII	Rule 12	10.42	10.42
FEE FOR FILING e-FORM ACTIVE UNDER RULE 25A OF THE COMPANIES (INCORPORATION) RULES, 2014	Ch 10	VIII	Rule 12	10.42	10.42
FEE FOR FILING ETC	Ch 10	6	Section 403	10.31	10.31
FEE FOR FILINGS ETC. UNDER SECTION 403 OF THE COMPANIES ACT, 2013	Ch 10	I	Rule 12	10.33	10.33
FEE FOR INSPECTION AND PROVIDING CERTIFIED COPIES OF DOCUMENTS KEPT BY THE REGISTRAR UNDER SECTION 399	Ch 10	IV	Rule 12	10.42	10.42
FEE FOR REGISTRATION OF DOCUMENTS UNDER SECTION 385	Ch 10	V	Rule 12	10.42	10.42
FEE ON APPLICATIONS (INCLUDING APPEAL) MADE TO CENTRAL GOVERNMENT UNDER SECTION 459 (2)	Ch 10	II	Rule 12	10.40	10.40
Fees for filing charge documents	Ch 10	I E	Rule 12	10.39	10.39
FEES FOR REMOVAL OF NAMES OF COMPANIES FROM THE REGISTRAR OF COMPANIES UNDER SECTION 248(2)	Ch 10	VI	Rule 12	10.42	10.42
Fees to be Paid to the Registrar	Ch 10	I A	Rule 12	10.33	10.33
Filing of an application for purpose of reconstruction of companies involving merger/ amalgamation or transfer of undertaking, property etc	Ch 5	4	Section 232	5.15	5.15
Filing of an application to CG	FCRA	4		2.26	2.26
Filing of application before adjudicating authority	IBC	3 IIA(1)	Section 7	3.24	3.24
Filing of application before NCLT	IBC	3 I	Section 4	3.24	3.24
Filing of application before the Tribunal on behalf of the members or depositors	Ch 6	6	Section 245	6.15	6.15
Filing of application by Central government with Tribuna	Ch 5	11	Section 233	5.33	5.33
Filing of application by operational creditor	IBC	3 IIB(2)(i)	Section 9	3.30	3.30
Filing of application by transferee company with the Registrar	Ch 5	11	Section 233	5.35	5.35
Filing of application for extension of period:	**IBC**	**3 VII(2)**	**Section 12**	**3.35**	3.36
Filing of application to registrar by company for removal of name	**Ch 8**	**3 I**	**Section 248**	**8.13**	8.13
Filing of certified copy of order altering Memorandum or Articles with Registrar:	Ch 6	4	Section 242	6.13	6.13
Filing of certified copy of order with registrar	Ch 5	4	Section 232	5.18	5.18
Filing of copy of order of Tribunal:	Ch 6	4	Section 242	6.12	6.12
Filing of copy of scheme with the Central Government, Registrar and the Official Liquidators	Ch 5	11	Section 233	5.32	5.33
Filing of Declaration by Liquidator on Appointment:	Ch 7	7	Section 275	7.08	7.08
Filing of duly certified statement of compliance of scheme with registrar	Ch 5	4	Section 232	5.19	5.19
Filing of Forms	**IBC**	**3 XV**	**Regulation 40B**	**3.62**	3.62
Filing of investigation Report with the special court	Ch 4	8	Section 212	4.18	4.17
Filing of order of tribunal with registrar	**Ch 5**	**2**	**Section 230**	**5.11**	5.11
Filing of petition by person authorized by the Central Government	**Ch 4**	**18**	**Section 224**	**4.32**	4.30

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Filing of Return in Form DIR-12 with the Registrar	Ch 1	18	DIR 12	1.55	1.55
Filing of the draft offer document and offer document	SEBI Reg.	2	**Regulation 25**	1.87	1.88
Filing of the draft offer document and offer documents	SEBI Reg.		**Regulation 123**	1.108	1.108
Filling of vacancy of rotational director	**Ch 1**	**3**	**Section 152**	**1.10**	1.10
Filling up of vacancies	SEBI Act	14	**Section 15P**	1.34	1.34
Financial commitment	FEMA	5	Definition	1.47	1.47
Financial commitment by Indian entity by modes other than equity capital–	FEMA	5	Regulation 3	1.62	1.62
Financial commitment by Indian entity by way of debt	FEMA	5	Regulation 4	1.62	1.62
Financial commitment by way of guarantee	FEMA	5	Regulation 5	1.63	1.63
Financial commitment by way of pledge or charge	FEMA	5	Regulation 6	1.64	1.64
Financial Debt	IBC	2	Definition	3.12	3.12
Financial Debt - Subscription money for purchase of shares is not financial debt	IBC	2	Definition	3.12	3.12
Financial Results	SEBI Reg.	5	**Regulation 33(3)**	1.57	**1.60**
Financial Results	SEBI Reg.	7	**Regulation 33(3)**	1.60	**1.62**
Financial Services	IBC	2	Definition	3.13	3.13
FIRM, BODY CORPORATE OR ASSOCIATION NOT TO BE APPOINTED AS INSPECTOR	Ch 4	11	Section 215	4.21	4.20
Fixation of Time limit for completion of proceedings and dissolution	Ch 7	14	Section 282	7.15	7.15
Fixed sum of penalty	Ch 9	14	Rule 3(xiii)	9.25	9.25
FLOATING CHARGE	Ch 7	42	Section 332	7.41	7.41
Flow of insolvency resolution process for individuals	IBC	1	Basics	3.08	3.08
Foreign company	FCRA	2	**Section 2(1)(j)**	2.04	2.04
Foreign Contribution	**FCRA**	**2**	**Section 2(1)(h)**	**2.06**	2.06
Foreign contribution received by a candidate for election	FCRA	5	Regulation 18	2.31	2.31
Foreign contribution through scheduled bank.	FCRA	5	Section 17	2.28	2.28
Foreign Exchange Management (Export of Goods and Services) Regulations, 2015	FEMA	5		1.69	1.69
Foreign Exchange Management (Overseas Investment) Regulations, 2022	FEMA	5		1.62	1.62
Foreign hospitality	**FCRA**	**2**	**Section 2(1)(i)**	2.08	2.08
Foreign hospitality may be received by specified categories of persons in the following manner	FCRA	3 III	Rule 7	2.13	2.13
Foreign Source	**FCRA**	**2**	**Section 2(1)(j)**	**2.05**	2.05
Forms for Application under Section 11	FCRA	4	Section 11	2.18	2.18
FORMS OF, AND PROCEDURE IN RELATION TO, CERTAIN APPLICATIONS	Ch 2	9	Section 201	2.31	2.31
Forms under section 92 or 137:- (i) In case the period within which a document required to be submitted under section 92 or 137 of the Act expires after 30/06/2018, the additional fee	Ch 10	I D	Rule 12	10.38	10.38
Forward copy of order to SFIO	Ch 4	8	Section 212	4.17	4.16
Forwarding of copy of an order:	Ch 9	14	Rule 3(ix)	9.24	9.24
Foundation of Code	IBC	1	Basics	3.06	3.06
Fraudulent application for removal of name.	Ch 8	3 IV	Section 251	8.17	8.17
FRAUDULENT PREFERENCE.	**Ch 7**	**38**	**Section 328**	**7.38**	7.38
Freezing of Assets of Company on Inquiry and Investigation	**Ch 4**	**16(1)**	**Section 221**	**4.29**	4.28
Functions of Board	SEBI Act	4	**Section 11**	1.06	1.06
Fund	SEBI Act	12	**Section 14**	1.20	1.20
Furnishing of information:	IBC	3 IIC(2)	Section 10	3.32	3.33
Furnishing of statement of all sums to Registrar with full particulars:	**Ch 7**	**51**	**Section 352**	**7.49**	7.49
FURTHER PUBLIC OFFER	SEBI Reg.			1.97	1.97

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
General conditions	SEBI Reg.	4	**Regulation 7**	1.76	1.77
General conditions	SEBI Reg.		**Regulation 104**	1.98	1.98
General Guidelines for Imports: These General Guidelines deals with the imports relating to foreign exchange transactions.	FEMA	5		1.21	1.21
General Notice to Members	Ch 2	9	Section 201	2.32	2.32
General Obligation of Compliance	SEBI Reg.	4	**Regulation 5**	1.56	**1.58**
General provisions	SEBI Reg.		**Regulation 6**	1.145	1.150
GOVERNMENT COMPANIES	Ch 8	4	Section 394	8.19	8.19
Grant of certificate of registration.	**FCRA**	**4**	**Section 12**	**2.20**	2.20
Granting of Bail	Ch 4	8	Section 212	4.17	4.16
Grants by the Central Government	SEBI Act	12	**Section 13**	1.20	1.20
Grievance Redressal Mechanism	SEBI Reg.	5	**Regulation 13(3)**	1.57	**1.59**
Holding of foreign exchange, etc.	FEMA	5	Section 4	1.13	1.13
Holding of Specified Securities and Shareholding Pattern	SEBI Reg.	5	**Regulation 31(1)**	1.57	**1.59**

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Identifying contributories on the basis of nature of rights	**Ch 7**	**17**	**Section 285**	**7.18**	7.18
Import - Evidence of Import	FEMA	5		1.21	1.21
Import - Extension of Time	FEMA	5		1.22	1.22
Import - General Guidelines	FEMA	5		1.21	1.21
Import - Issue of Guarantees by an Authorised Dealer:	FEMA	5		1.24	1.24
Import - Mode of Payment	FEMA	5		1.21	1.21
Import - Obligation of Purchaser of Foreign Exchange	FEMA	5		1.21	1.21
Import - Remittances for Import Payments	FEMA	5		1.21	1.21
Import - Time Limit for Settlement of Import Payments	**FEMA**	**5**		**1.22**	1.22
Import - Time Limit for Settlement of Import Payments - Deferred Payment	**FEMA**	**5**		**1.22**	1.22
Import - Utilization of acquired Foreign Exchange	FEMA	5		1.21	1.21
Import of Foreign Exchange / Indian Rupees	**FEMA**	**5**		**1.23**	1.23
Import of Foreign Exchange into India	**FEMA**	**5**		**1.23**	1.23
IMPORT OF GOODS AND SERVICES - Basics	FEMA	5		1.20	1.20
Import of Indian Currency and Currency Notes	**FEMA**	**5**		**1.24**	1.24
Important aspects of COMPROMISES, ARRANGEMENTS AND AMALGAMATIONS	Ch 5	1	Basics	5.04	5.04
IMPORTANT DEFINITIONS	FCRA	2		2.04	2.04
Imposition of cost if a summoned person fails to appear	Ch 7	30	Section 299	7.29	7.29
Imposition of Restrictions upon Securities	Ch 4	16(2)	Section 222	4.30	4.29
Inactive company	**Ch 8**	**6 III**	**Section 455**	**8.32**	8.32
Inclusion of takeover offer	**Ch 5**	**2**	**Section 230**	**5.12**	5.12
Incorporation services	Ch 10	2	Form	10.27	10.27
Increase in authorised capital	Ch 10	I C	Rule 12	10.38	10.38
Indemnification to the Central Government	**Ch 4**	**18**	**Section 224**	**4.32**	4.31
Independent director	**Ch 1**	**2**	**Section 149**	**1.35**	1.35
Independent director	**Ch 1**	**12**	**Section 149**	**1.35**	1.35
Indication of importer-exporter code number:	FEMA	5 (5)	Regulation 5	1.71	1.72
Inform its members regarding candidature of person for office of director	Ch 1	5	Rule 13	1.19	1.19
information memorandum - Preparation of information memorandum	IBC	3 XII	Section 29	3.46	3.46
Informational Services	Ch 10	2	Form	10.29	10.29
INITIAL PUBLIC OFFER ON MAIN BOARD	SEBI Reg.			1.74	1.74
Initiation date	IBC	2	Definition	3.18	3.18
Initiation of case by CG	Ch 6	2	Section 241	6.07	6.07
Initiation of Corporate Insolvency Resolution Process ("CIRP"	IBC	1	Basics	3.06	3.06
Initiation of corporate insolvency resolution process by corporate applicant	**IBC**	**3 IIC**	**Section 10**	**3.32**	3.32
Initiation of corporate insolvency resolution process by financial creditor	**IBC**	**3 IIA**	**Section 7**	**3.24**	3.24
Initiation of corporate insolvency resolution process by operational creditor	**IBC**	**3 IIB**	**Section 8**	**3.30**	3.30
Initiation of liquidation.	IBC	4	Section 33	3.63	3.63
Initiation of winding up proceeding suo moto by the Central Government	**Ch 4**	**18**	**Section 224**	**4.32**	4.30
Inquiry by the Registrar	Ch 4	2	Section 206	4.04	4.04
Inscription or recording of non-transferability	SEBI Reg.	5	**Regulation 20**	1.85	1.86
Inscription or recording of non-transferability	SEBI Reg.		**Regulation 118**	1.106	1.107
Insolvency	IBC	1	Basics	3.03	3.04
Insolvency commencement date	IBC	2	Definition	3.18	3.18
Insolvency resolution process period	IBC	2	Definition	3.18	3.18
Inspection by Central Government:	Ch 4	2	Section 206	4.05	4.04

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
INSPECTION OF BOOKS AND PAPERS BY CREDITORS AND CONTRIBUTORIES.	**Ch 7**	**49**	**Section 346**	**7.48**	7.48
Inspection of report by a creditor or contributory	Ch 7	13	Section 281	7.15	7.15
Inspection:	Ch 3	19	Section 190	3.66	3.66
Inspector may require any body corporate, other than a body corporate referred in point	Ch 4	13	Section 217	4.22	4.21
INSPECTOR'S REPORT	Ch 4	17	Section 223	4.31	4.29
Instruction/ information filed by the authorised representative received by the FC he represents with CoC for voting	IBC	3 XIII	Section 25A	3.53	3.53
INSTRUCTIONS - Fees payable in the following head.	Ch 10	Annex	Rule 12	10.43	10.43
Intention of filing application	Ch 8	3 IV	Section 251	8.17	8.17
Interest or Rights to remain same; and if not, entitlement for Compensation	Ch 5	7	Section 237	5.28	5.28
Interested Director	**Ch 1**	**2**	**Section 149**	**1.05**	1.05
Interested Director - Contract voidable at the option of company if there is non-disclosure	Ch 3	12	Section 184	3.41	3.41
Interested Director - Disclosure	Ch 3	12	Section 184	3.39	3.39
Interested Director - General disclosure of interest by interested director	Ch 3	12	Section 184	3.39	3.39
Interested Director - manner of disclosure and other certain matters	Ch 3	12	Section 184	3.39	3.39
Interested Director - No restriction on directors	Ch 3	12	Section 184	3.42	3.42
Interested Director - Punishment for contravention	Ch 3	12	Section 184	3.41	3.41
Interested Director - Specific disclosure of interest by interested director	Ch 3	12	Section 184	3.40	3.40
Interim order	Ch 6	4	Section 242	6.12	6.12
Interim Resolution professional - Powers of IRP	IBC	3 XI	Section 17	3.41	3.41
Intermittent vacancy of an independent director	**Ch 1**	**12**	**Section 149**	**1.35**	1.35
Intimation by candidate for election.	**FCRA**	**5**	**Section 21**	**2.31**	2.31
Intimation of foreign contribution by the recipient.	FCRA	5		2.29	2.29
Intimation of the decision of the committee of creditors to liquidate to Adjudicating authority	IBC	4	Section 33	3.64	3.64
Intimation to CG	FCRA	5	Section 18	2.29	2.29
Intimation to CG in case of availing Foreign hospitality	FCRA	3 III	Section 6	2.13	2.13
INTIMATION TO COMPANY LIQUIDATOR, PROVISIONAL LIQUIDATOR AND REGISTRAR.	Ch 7	9	Section 277	7.10	7.10
INTRODUCTION	Ch 1	1	Basics	1.02	1.02
INTRODUCTION	Ch 10	1	Basics	10.02	10.02
INTRODUCTION	Ch 2	1	Basics	2.02	2.02
INTRODUCTION	Ch 3	1	Basics	3.02	3.02
INTRODUCTION	Ch 4	1	Basics	4.02	4.02
INTRODUCTION	Ch 5	1		5.02	5.02
INTRODUCTION	Ch 6	1	Basics	6.02	6.02
INTRODUCTION	Ch 7	1	Basics	7.02	7.02
INTRODUCTION	Ch 8	1	Basics	8.02	8.02
INTRODUCTION	Ch 9	1	Basics	9.02	9.02
INTRODUCTION	FCRA	1		2.02	2.02
INTRODUCTION	FEMA	1		1.02	1.02
INTRODUCTION	IBC	1	Basics	3.02	3.02
INTRODUCTION	SEBI Act	1		1.02	1.02
INTRODUCTION	SEBI Reg.	1		1.123	1.124
Introduction	SEBI Reg.	2		1.50	1.50

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
INTRODUCTION	SEBI Reg.			1.70	1.70
Investigation	SEBI Act	8	**Section 11C**	1.14	1.14
Investigation by an investigating offic	Ch 4	8	Section 212	4.16	4.15
INVESTIGATION ETC. OF FOREIGN COMPANIES	Ch 4	22	Section 228	4.35	4.33
Investigation in the opinion of Central Government	**Ch 4**	**6**	**Section 210**	**4.11**	4.11
INVESTIGATION INTO AFFAIRS OF COMPANY	**Ch 4**	**6**	**Section 210**	**4.11**	4.11
INVESTIGATION INTO AFFAIRS OF COMPANY BY SERIOUS FRAUD INVESTIGATION OFFICE	Ch 4	8	Section 212	4.14	4.14
Investigation into affairs of related companies	Ch 4	15 (1)	Section 219	4.27	4.26
Investigation into cases under the Act.	FCRA	9	Section 43	2.37	2.38
INVESTIGATION INTO COMPANY'S AFFAIRS IN OTHER CASES	Ch 4	9	Section 213	4.19	4.18
INVESTIGATION OF OWNERSHIP OF COMPANY	Ch 4	12	Section 216	4.21	4.20
Investigation on the order by a court or the Tribuna	**Ch 4**	**6**	**Section 210**	**4.12**	**4.11**
Investigation/action conducted under Companies Act, 1956:	Ch 4	8	Section 212	4.18	4.17
Investments by a company in its own name	**Ch 3**	**16**	**Section 187**	**3.53**	3.53
INVESTMENTS OF COMPANY TO BE HELD IN ITS OWN NAME	Ch 3	16	Section 187	3.53	3.53
Investor Services	Ch 10	2	Form	10.29	10.29
Is the vacation of CA. Dev as an auditor at 23rd AGM of TML and his reappointment at 24th AGM is Valid?	**Ch 10**	**8**	**Case Study**	**10.52**	10.52
ISSUANCE CONDITIONS AND PROCEDURE	SEBI Reg.			1.111	1.112
ISSUANCE CONDITIONS AND PROCEDURE	SEBI Reg.			1.90	1.91
ISSUE OF CONVERTIBLE DEBT INSTRUMENTS AND WARRANTS	SEBI Reg.			1.100	1.100
ISSUE OF CONVERTIBLE DEBT INSTRUMENTS AND WARRANTS	SEBI Reg.			1.79	1.80
Issue of convertible debt instruments for financing	SEBI Reg.	4	**Regulation 12**	1.81	1.81
Issue of convertible debt instruments for financing	SEBI Reg.		**Regulation 110**	1.102	1.102
Issue of directions by Reserve Bank in certain cases	FEMA	5 (16)	Regulation 16	1.76	1.76
Issue of letter of request where evidence is, or may be, available in a country or place outside India by competent court	Ch 4	13	Section 217	4.24	4.23
Issue of warrants	SEBI Reg.	5		1.81	1.81
Issue of warrants	SEBI Reg.		**Regulation 111**	1.102	1.103
Issue of written notice by an adjudicating officer	Ch 9	14	Rule 3(ii)	9.22	9.23
Issue-related advertisements	SEBI Reg.		**Regulation 139**	1.116	1.117
JURISDICTION OF TRIBUNAL.	Ch 7	12	Section 280	7.14	7.14
Key Managerial Personnel	Ch 2	1	Section 2(51)	2.02	2.02

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
LEGAL ADVISERS AND BANKERS NOT TO DISCLOSE CERTAIN INFORMATION	**Ch 4**	**21**	**Section 227**	**4.34**	4.33
Legal position of Directors	Ch 1	1	Basics	1.02	1.02
Lesser number of directorships than maximum	Ch 1	11	Section 165	1.34	1.34
LESSER PENALTIES FOR ONE PERSON COMPANIES OR SMALL COMPANIES	**Ch 9**	**13**	**Section 446B**	**9.22**	9.22
Letter of request - Receipt	Ch 4	13	Section 217	4.25	4.24
LIABILITIES AND RIGHTS OF CERTAIN PERSONS FRAUDULENTLY PREFERRED.	Ch 7	41	Section 331	7.40	7.40
Liability - ID	**Ch 1**	**12**	**Section 149**	**1.42**	1.42
Liability for prior offences, etc.	IBC	3 XV	Section 32A	3.60	3.60
Liability of a Corporate Debtor for an offence committed prior to the commencement of the corporate insolvency resolution process	IBC	3 XV	Section 32A	3.60	3.60
Liability of Audit Firm and its Partners	Ch 6	6	Section 245	6.16	6.16
LIABILITY OF OFFICERS IN RESPECT OF OFFENCES COMMITTED PRIOR TO MERGER, AMALGAMATION, ETC	Ch 5	10	Section 240	5.30	5.30
Liberalised Remittance Scheme	**FEMA**	**5**		**1.18**	1.18
Liberalised Remittance Scheme	**FEMA**	**5**		**1.20**	**1.19**
Licensing of dealers in securities in certain areas	SEBI Act	4	**Section 11**	1.11	1.11
Limitation	SEBI Act	14	**Section 15W**	1.38	1.38
Limitation.	Ch 9	2	Section 433	9.10	9.10
Liquidation	IBC	1	Basics	3.03	3.03
Liquidation commencement date	IBC	2	Definition	3.18	3.18
LIQUIDATION PROCESS	IBC	4		3.63	3.63
LIQUIDATOR TO MAKE RETURNS, ETC.	Ch 7	52	Section 353	7.52	7.52
List of Important e-Forms	Ch 10	2	Form	10.25	10.25
Loan and investment - Circumstances when no prior approval of public financial institution (PFI) is required	Ch 3	15	Section 186	3.50	3.50
Loan and investment - Disclosure in financial statement	**Ch 3**	**15**	**Section 186**	**3.49**	3.49
Loan and investment - Disclosure of total amount in resolution in respect of loan or guarantee or security or acquisition	**Ch 3**	**15**	**Section 186**	**3.49**	3.49
Loan and investment - Disclosure to members	Ch 3	15	Section 186	3.49	3.49
Loan and investment - Exemption from special resolution	**Ch 3**	**15**	**Section 186**	**3.49**	3.49
Loan and investment - Imposition of limit on the quantum of loan and investment made by a company	**Ch 3**	**15**	**Section 186**	**3.47**	3.47
Loan and investment - Investment permitted through two layers of Investment Companies	**Ch 3**	**15**	**Section 186**	**3.47**	3.47
Loan and investment - Loans and Advances to Employees - Clarification on the applicability of Section 186	**Ch 3**	**15**	**Section 186**	**3.47**	3.47
Loan and investment - Maintenance of Register	Ch 3	15	Section 186	3.51	3.51
Loan and investment - No giving of loan, etc., till default in respect of deposits is subsisting	Ch 3	15	Section 186	3.50	3.50
Loan and investment - Prior approval by a special resolution for exceeding limit	**Ch 3**	**15**	**Section 186**	**3.48**	3.48
Loan and investment - Punishment for contravention	Ch 3	15	Section 186	3.52	3.52
Loan and investment - Rate of interest on loan	Ch 3	15	Section 186	3.50	3.50
Loan and investment - Restriction on the inter-corporate loans/deposits to be taken by companies registered under Section 12 of SEBI	Ch 3	15	Section 186	3.52	3.52
Loan and investment - Unanimous resolution of the Board	Ch 3	15	Section 186	3.49	3.49
LOAN AND INVESTMENT BY COMPANY	**Ch 3**	**15**	**Section 186**	**3.47**	3.47
Loan to Directors - Imposition of restrictions	**Ch 3**	**14**	**Section 185**	**3.44**	3.44
Loan to Directors - Non-applicability of restrictions	**Ch 3**	**14**	**Section 185**	**3.46**	3.46

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Loan to Directors - Penalty for contravention	Ch 3	14	Section 185	3.46	3.46
Loan to Directors - Relaxation from restrictions	**Ch 3**	**14**	**Section 185**	**3.45**	3.45
LOAN TO DIRECTORS, ETC.	**Ch 3**	**14**	**Section 185**	**3.44**	3.44
LOCK-IN AND RESTRICTIONS ON TRANSFERABILITY	SEBI Reg.			1.105	1.106
LOCK-IN AND RESTRICTIONS ON TRANSFERABILITY	SEBI Reg.			1.83	1.84
Lock-in of Partly-paid securities	SEBI Reg.	4	**Regulation 19**	1.85	1.86
Lock-in of party-paid securities	SEBI Reg.		**Regulation 117**	1.106	1.107
Lock-in of specified securities held by persons other than the promoters	SEBI Reg.	2	**Regulation 17**	1.84	1.85
Lock-in of specified securities held by the promoters	SEBI Reg.	1	**Regulation 16**	1.83	1.84
Lock-in of specified securities held by the promoters	**SEBI Reg.**		**Regulation 115**	**1.105**	1.106
Lock-in of specified securities lent to stabilising agent under green shoe option	SEBI Reg.		**Regulation 116**	1.106	1.107
Lock-in of specified securities lent to stabilising agent under the green shoe option	SEBI Reg.	3	**Regulation 18**	1.85	1.86

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Maintenance of accounts.	FCRA	5	Section 19	2.30	2.30
Maintenance of copy of contract of employment	Ch 3	19	Section 190	3.66	3.66
Maintenance of register	Ch 3	16	Rule 14	3.55	3.55
Maintenance of Register by a company in case securities are held in the name of a depository and not in its own name	Ch 3	16	Section 187	3.54	3.54
Maintenance of register of contracts or arrangements	Ch 3	18	Section 189	3.64	3.64
Maintenenace of Data Bank of Independent Directors	Ch 1	13	Section 150	1.43	1.43
Making of Application for Approval	Ch 2	9	Section 201	2.32	2.32
Making of false statement, declaration or delivering false accounts.	FCRA	8	Section 33	2.34	2.35
Management of foreign contribution of person whose certificate has been cancelled or surrendered.	FCRA	4	Section 15	2.25	2.25
Management of operations of corporate debtor as going concern	IBC	3 XI	Section 20	3.42	3.42
Management of the Board	SEBI Act	3	**Section 4**	1.03	1.03
Manager	Ch 2	1	Section 2(53)	2.02	2.02
Managing Director	Ch 2	1	Section 2(54)	2.03	2.03
Manner & procedure of selection specified by CG	Ch 1	13	Rule 6	1.46	1.46
Manner and Conditions of Filing	Ch 10	2	Rule 7	10.05	10.05
Manner of calls	SEBI Reg.		**Regulation 144**	1.117	1.118
Manner of calls	SEBI Reg.		**Regulation 48**	1.91	1.92
Manner of making OI by resident individual - Acquisition by way of gift or inheritance	FEMA	5		1.59	1.59
Manner of making OI by resident individual - Acquisition of shares or interest under Employee Stock Ownership Plan or Employee Benefits Scheme or sweat equity shares	FEMA	5		1.60	1.60
Manner of making OI by resident individual - Manner of making OI	FEMA	5		1.58	1.58
Manner of making overseas investment	FEMA	5		1.52	1.52
Manner of payment of export value of goods	FEMA	5 (8)	Regulation 8	1.73	1.73
Manner of preparation of register	Ch 3	18	Rule 16	3.64	3.64
MANNER OF SELECTION OF INDEPENDENT DIRECTORS AND MAINTENANCE OF DATA BANK OF INDEPENDENT DIRECTORS	Ch 1	13	Section 150	1.43	1.43
Manner of submission of proof of claims to IRP:	IBC	3 XI	Section 20	3.42	3.43
Manner of the written notice	Ch 9	14	Rule 3(iii)	9.23	9.23
Material change in the management may occur if there is:	**Ch 6**	**2**	**Section 241**	**6.06**	6.06
Matters in respect of which powers shall be exercised after obtaining consent by a special resolution	**Ch 3**	**8**	**Section 180**	**3.31**	3.31
Maximum Number of Directorship	**SEBI Reg.**	**3**	**Regulation 17A**	**1.52**	**1.53**
MAXIMUM NUMBER OF DIRECTORSHIPS	**Ch 1**	**11**	**Section 165**	**1.33**	1.33
MCA21 - Features	Ch 10	1	MCA21	10.02	10.02
MCA21 application offers the following benefits:	Ch 10	1	MCA21	10.04	10.04
MCA21 has made all company related information accessible to various stakeholders	Ch 10	1	MCA21	10.03	10.03
MCA21 V3.0 - Key Components	Ch 10	7	General	10.44	10.44
MCA21 VERSION 3.0	Ch 10	7	General	10.44	10.44
Mediation and Conciliation Panel - Fees and other conditions of experts	Ch 9	6	Section 442	9.20	9.20
Mediation and Conciliation Panel - Objection to the recommendation of the Mediation and Conciliation Panel	Ch 9	6	Section 442	9.20	9.20
Mediation and Conciliation Panel - Procedure and disposal of matter	Ch 9	6	Section 442	9.20	9.20

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Mediation and Conciliation Panel - Referring of matters by any parties to proceedings to Mediation & Conciliation Panel:	Ch 9	6	Section 442	9.19	9.19
Mediation and Conciliation Panel - Suo moto referring of matters to Mediation and Conciliation Panel	Ch 9	6	Section 442	9.19	9.19
Mediation and Conciliation Panel.	Ch 9	6	Section 442	9.19	9.19
Meetings	**SEBI Act**	**3**	**Section 7**	**1.05**	1.05
MEETINGS TO ASCERTAIN WISHES OF CREDITORS OR CONTRIBUTORIES.	Ch 7	53	Section 354	7.52	7.52
Member not to participate in meetings in certain cases	**SEBI Act**	**3**	**Section 7A**	**1.05**	1.05
Members having right to apply:	**Ch 6**	**3**	**Section 244**	**6.09**	6.09
Members, officers and employees of the Board to be public servants	SEBI Act	15	**Section 22**	1.41	1.41
MEMBERS' RIGHT TO INSPECT	Ch 1	19	Section 171	1.56	1.56
MERGER AND AMALGAMATION OF COMPANIES	Ch 5	4	Section 232	5.15	5.15
Merger by absorption	Ch 5	4	Section 232	5.19	5.19
Merger by formation of a new company	Ch 5	4	Section 232	5.19	5.19
MERGER OR AMALGAMATION OF COMPANY WITH FOREIGN COMPANY	Ch 5	12	Section 234	5.35	5.35
Minimum promoters' contribution	**SEBI Reg.**	**1**	**Regulation 14**	**1.81**	1.82
Minimum promoters' contribution	**SEBI Reg.**		**Regulation 113**	**1.104**	1.105
Minimum subscription	**SEBI Reg.**		**Regulation 141**	**1.116**	1.117
Minimum subscription	**SEBI Reg.**		**Regulation 45**	**1.91**	1.91
MISCELLANEOUS	FCRA	9		2.37	2.37
MISCELLANEOUS	SEBI Reg.			1.120	1.121
MISCELLANEOUS	SEBI Reg.			1.94	1.95
MISCELLANEOUS PROVISIONS	Ch 8	6	Section 447, 450, 455	8.31	8.31
Mode of payment	FEMA	5	Regulation 8	1.65	1.65
Model time-line for corporate insolvency resolution process.	**IBC**	**3 XV**	**Regulation 40A**	**3.62**	3.62
MODES OF WINDING UP.	Ch 7	2	Section 270	7.02	7.02
Monitoring agency	SEBI Reg.		**Regulation 137**	1.115	1.116
Moratorium.	IBC	3 X	Section 14	3.38	3.38

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Natural Defence Fund Contribution	**Ch 3**	**11**	**Section 183**	**3.39**	3.39
Nature of decree and its execution	Ch 9	2	Section 424	9.08	9.08
Nature of orders that can be passed by the Tribunal	Ch 6	4	Section 242	6.11	6.11
Nature of proceedings	Ch 9	2	Section 424	9.08	9.08
Nature of the assets for Valuation	**Ch 8**	**2**	**Section 247**	**8.02**	8.02
NCLT AND NCLAT	Ch 9	2	Section 407-434	9.03	9.03
Nidhi Co. - Acceptance of Deposits by Nidhis	Ch 8	5	Rule 11	8.26	8.26
Nidhi Co. - Application	Ch 8	5	Rule 2	8.22	8.22
Nidhi Co. - Auditor	Ch 8	5	Rule 19	8.30	8.30
Nidhi Co. - Auditor's certificate	Ch 8	5	Rule 22	8.30	8.30
Nidhi Co. - Definitions	Ch 8	5	Rule 3	8.22	8.22
Nidhi Co. - Definitions - Net Owned Fund	Ch 8	5	Rule 3	8.22	8.22
Nidhi Co. - Definitions - Nidhi	Ch 8	5	Rule 3	8.22	8.22
Nidhi Co. - Deposits	**Ch 8**	**5**	**Rule 13**	**8.27**	8.27
Nidhi Co. - Dividend	Ch 8	5	Rule 18	8.29	8.29
Nidhi Co. - Filling of Half Yearly Return	**Ch 8**	**5**	**Rule 21**	**8.30**	8.30
Nidhi Co. - General restrictions or prohibitions	Ch 8	5	Rule 6	8.24	8.24
Nidhi Co. - Incorporation and incidental matters	Ch 8	5	Rule 4	8.23	8.23
Nidhi Co. - Loans	**Ch 8**	**5**	**Rule 15**	**8.28**	8.28
Nidhi Co. - Membership	**Ch 8**	**5**	**Rule 8**	**8.26**	8.26
Nidhi Co. - Net owned funds	**Ch 8**	**5**	**Rule 9**	**8.26**	8.26
Nidhi Co. - Penalty for non-compliance	Ch 8	5	Rule 24	8.30	8.30
Nidhi Co. - Rate of Interest	Ch 8	5	Rule 16	8.29	8.29
Nidhi Co. - Requirements for minimum number of members, net owned fund	**Ch 8**	**5**	**Rule 5**	**8.23**	8.23
Nidhi Co. - Rules relating to Directors	Ch 8	5	Rule 17	8.29	8.29
Nidhi Co. - Security deposit-160 Clarification	**Ch 1**	**5**	**Section 160**	**1.20**	1.20
Nidhi Co. - Share capital and allotment	Ch 8	5	Rule 7	8.25	8.25
Nidhi Co. - Un-encumbered Term Deposits	**Ch 8**	**5**	**Rule 14**	**8.28**	8.28
NIDHIS	Ch 8	5	Section 406	8.21	8.21
No compensation except after specific disclosures and after approval of payment proposal by members	Ch 3	20	Section 191	3.68	3.68
No Compensation for loss / termination of office	Ch 6	5	Section 243	6.15	6.15
No compensation payable under specific circumstances	Ch 3	20	Section 191	3.68	3.68
No effect on disclosures	Ch 3	20	Section 191	3.69	3.69
No Objection Certificate	FEMA	5		1.52	1.52
No other investigating agency of CG/ or any SG shall proceed with investigation where case is assigned to SFIO	Ch 4	8	Section 212	4.16	4.15
No person having a definite cultural, economic, educational, religious or social programme	**FCRA**	**4**	Section 11	**2.18**	2.18
No request for recording any event based information or changes shall be accepted by the Registrar from such defaulting companies	Ch 10	2	General	10.06	10.06
No. of directors; Max and min directors	**Ch 1**	**2**	**Section 149**	**1.03**	1.03
NOMINATION AND REMUNERATION COMMITTEE	**Ch 3**	**6A**	**Section 178**	**3.23**	3.23
Nomination and remuneration committee	SEBI Reg.	9B	**Regulation 19**	1.67	**1.68**
Nomination and Remuneration Committee - Companies not required to constitute a Nomination and Remuneration Committee	**Ch 3**	**6A**	**Rule 4**	**3.24**	3.24
Nomination and Remuneration Committee - Composition	**Ch 3**	**6A**	**Section 178**	**3.24**	3.24

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Nomination and Remuneration Committee - Functions	Ch 3	6A	Section 178	3.25	3.24
Nomination and Remuneration Committee - Modification (Govt Co.)	Ch 3	6A	Section 178	3.25	3.25
NOMINATION AND REMUNERATION COMMITTEE AND STAKEHOLDERS RELATIONSHIP COMMITTEE AND PUNISHMENT	Ch 3	6	Section 178	3.23	3.23
Nominee Director	**Ch 1**	**7**	**Section 161**	**1.26**	1.26
Non applicability of Section 163	Ch 1	9	Section 163	1.31	1.31
Non-Applicability of Rules and Regulations relating thereto in Certain Cases	FEMA	5		1.49	1.49
Non-applicability of Section 152 (5)	Ch 1	3	Section 152	1.07	1.07
Non-applicability of Section 160	Ch 1	5	Section 160	1.21	1.21
Non-applicability of Section 162	Ch 1	8	Section 162	1.29	1.29
Non-applicability of Section 186 except sub-section (1) to certain transactions	**Ch 3**	**15**	**Section 186**	**3.51**	3.51
Non-applicability of sections 326 & 327	**Ch 7**	**37**	**Section 327**	**7.38**	7.38
Non-applicability of the Code	IBC	1	Section 2	3.11	3.11
Non-Executive Director	**Ch 1**	**2**	**Section 149**	**1.05**	1.05
Non-rotational Directors	**Ch 1**	**3**	**Section 152**	**1.11**	1.11
Not affecting on the power of tribunal	Ch 8	3 I	Section 248	8.14	8.14
Notes of any examination	Ch 4	13	Section 217	4.24	4.22
Notice of meeting to be conducted on order of Tribunal	**Ch 5**	**2**	**Section 230**	**5.08**	5.08
Notice to company on appointing of provisional liquidator:	**Ch 7**	**5**	**Section 273**	**7.06**	7.06
Notice to rectify the defect in the application	IBC	3 IIA(4)	Section 7	3.27	3.27
Notices to sectoral regulators to make representation, if likely to be affected by the compromise or arrangement	**Ch 5**	**2**	**Section 230**	**5.10**	5.10
Notifying company for purchase of minority shareholding	**Ch 5**	**6**	**Section 236**	**5.23**	5.23
Number of Independent Directors	**Ch 1**	**12**	**Section 149**	**1.35**	1.35

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Objectives	IBC	1	Basics	3.04	3.04
OBLIGATIONS OF DIRECTORS AND MANAGERS.	Ch 7	18	Section 286	7.19	7.19
Obligations of person resident in India	FEMA	5	Regulation 9	1.65	1.66
Obligations of the acquirer	**SEBI Reg.**		**Regulation 25**	**1.129**	1.130
Obligations of the manager to the open offer	SEBI Reg.		**Regulation 27**	1.132	1.134
Obligations of the target company	**SEBI Reg.**		**Regulation 26**	**1.130**	1.131
OBLIGATIONS:	SEBI Reg.			1.128	1.129
Obtaining copy or report	Ch 4	17	Section 223	4.31	4.29
ODI by Indian entity - Limit for financial commitment	**FEMA**	**5**		**1.57**	1.57
ODI by Indian entity - Manner of making ODI	FEMA	5		1.56	1.56
ODI by Indian entity - ODI in financial services activity	FEMA	5		1.57	1.57
ODI by Registered Trust or Society	FEMA	5		1.60	1.60
Off Shore Banking Unit	FEMA	6		1.78	1.78
Offences	SEBI Act	15	**Section 24**	1.42	1.42
OFFENCES AND PENALTIES	FCRA	8		2.34	2.35
Offences are cognizable and non-Bailable:	Ch 4	8	Section 212	4.16	4.15
Offences by companies	SEBI Act	15	**Section 27**	1.44	1.44
Offences by companies.	FCRA	8	Section 39	2.36	2.36
OFFENCES BY OFFICERS OF COMPANIES IN LIQUIDATION.	Ch 7	46	Section 336	7.45	7.45
Offences to be non-cognizable.	**Ch 9**	**4**	**Section 439**	**9.15**	9.15
Offences triable by Special Courts	SEBI Act	15	**Section 26B**	1.43	1.43
Offences triable by Special Courts.	Ch 9	3	Section 436	9.13	9.13
Offer of equity shares to minority shareholders by acquirer, person or group of persons	**Ch 5**	**6**	**Section 236**	**5.23**	5.23
Offer to majority shareholder to purchase the minority equity shareholding	**Ch 5**	**6**	**Section 236**	**5.24**	5.24
Office or Place of profit - Meaning	**Ch 3**	**17**	**Section 188**	**3.58**	3.58
Office, branch or agency	FEMA	**4**		1.10	1.10
OI by Mutual Funds or Venture Capital Funds or Alternative Investment Funds	FEMA	5		1.60	1.60
Omnibus approval	**Ch 3**	**5A**	**Section 177**	**3.19**	3.19
Omnibus Approval - Non-applicability to a transaction between a holding and its wholly owned subsidiary company	**Ch 3**	**5A**	**Section 177**	**3.20**	3.20
Omnibus Approval for Related Party Transactions on Annual Basis	**Ch 3**	**5A**	**Rule 6A**	**3.19**	3.19
On basis of report , if person appears to be guilty of offence	**Ch 4**	**18**	**Section 224**	**4.31**	4.30
On receipt of demand notice by corporate debtor - dispute or unpaid debt	**IBC**	**3 IIB(1)**	**Section 8**	**3.30**	3.30
Opening of Demat Accounts by clearing corporations of stock exchanges and clearing members	FEMA	5		1.61	1.61
Opening of the issue	SEBI Reg.		**Regulation 140**	1.116	1.117
Opening of the issue	SEBI Reg.		**Regulation 44**	1.90	1.91
Oppression	Ch 6	1	Basics	6.04	6.04
OPTION TO ADOPT PRINCIPLE OF PROPORTIONAL REPRESENTATION FOR APPOINTMENT OF DIRECTORS	Ch 1	9	Section 163	1.30	1.30
Order - admit or reject application	IBC	3 IIA(4)	Section 7	3.27	3.27
Order of an adjudicating authority	IBC	3 IIB(4)	Section 9	3.31	3.31
Order of the tribunal	Ch 4	16(1)	Section 221	4.29	4.28
Order of Tribunal	Ch 7	14	Section 282	7.16	7.16
Order of tribunal as it may deem just - : If a company, or any member or creditor or workman thereof feels aggrieved by the company	**Ch 8**	**3 V**	**Section 252**	**8.18**	8.18

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Order of Tribunal may allow set off:	Ch 7	26	Section 295	7.27	7.27
Order of Tribunal may declare a transaction as invalid in case of fraudulent preference	**Ch 7**	**38**	**Section 328**	**7.39**	7.39
Order of Tribunal on the agreement of compromise or arrangement [	Ch 5	4	Section 232	5.16	5.16
Order of Tribunal to acquire shares of dissenting shareholders	**Ch 5**	**5**	**Section 235**	**5.21**	5.21
Order of Tribunal to be binding	Ch 6	6	Section 245	6.18	6.18
Order of tribunal to be filed with register:	**Ch 8**	**3 V**	**Section 252**	**8.18**	8.18
Order passed by the Tribunal:	Ch 6	4	Section 242	6.11	6.11
Order passed by Tribunal	**Ch 7**	**5**	**Section 273**	**7.06**	7.06
Order to be deemed to be notice of discharge	IBC	4	Section 33	3.64	3.64
Orders constituting Appellate Tribunal to be final and not to invalidate its proceedings	SEBI Act	14	**Section 15R**	1.36	1.36
Orders of Tribunal.	**Ch 9**	**2**	**Section 420**	**9.04**	9.04
Other Corporate Governance Requirements	SEBI Reg.	5	**Regulation 27(2)**	1.57	**1.59**
Other Requirements of Appointment	Ch 1	3	Section 152	1.06	1.06
Overriding Preferential payments - Debts to be paid in priority:	Ch 7	36	Section 326	7.34	7.34
Overriding Preferential payments-Debts mentioned in Proviso to be paid in full:	Ch 7	36	Section 326	7.34	7.34
OVERRIDING PREFERENTIAL PAYMENTS.	**Ch 7**	**36**	**Section 326**	**7.34**	7.34
Overseas Direct Investment	FEMA	5	Definition	1.48	1.48
Overseas Investment	FEMA	5	Definition	1.48	1.48
Overseas Investment	FEMA	5		1.51	1.51
OVERSEAS INVESTMENT RULES, 2022	FEMA	5		1.46	1.46
Overseas Portfolio Investment	FEMA	5	Definition	1.48	1.48

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
PART I: WINDING UP BY THE TRIBUNAL	Ch 7		SEC 271 – 303	7.02	7.02
PART II- VOLUNTARY WINDING UP (OMITTED)	Ch 7		SEC 304- 323	7.33	7.33
PART III OF SCHEDULE V- Provisions applicable to Parts I and II	**Ch 2**	**12**	**Schedule V**	**2.39**	2.39
PART IV OF SCHEDULE V: Exemption by Central Government	**Ch 2**	**12**	**Schedule V**	**2.39**	2.39
Particulars to be mentioned in the Report of Company Liquidator	Ch 7	13	Section 281	7.14	7.14
Particulars to be stated in the order	**Ch 5**	**2**	**Section 230**	**5.11**	5.11
Pass order after giving of reasonable opportunity of being heard:	Ch 9	2	Section 421	9.05	9.05
Passing of an order by an Board	**SEBI Act**	**4**	**Section 11**	**1.08**	1.08
Passing of an order by the adjudicating officer:	Ch 9	14	Rule 3(vi)	9.23	9.24
Passing of an order of Tribunal	Ch 5	11	Section 233	5.33	5.33
PASSING OF RESOLUTION BY CIRCULATION	**Ch 3**	**4**	**Section 175**	**3.15**	3.15
Passing of Winding up order by Tribunal:	Ch 5	3	Section 231	5.14	5.14
Payment for the Export	FEMA	5 (12)	Regulation 12	1.74	1.75
Payment lawful if within prescribed limits	Ch 3	20	Section 191	3.68	3.68
PAYMENT OF DEBTS BY CONTRIBUTORY AND EXTENT OF SET-OFF.	Ch 7	26	Section 295	7.27	7.27
Payment of money due against any subsequent call may be allowed to set off	Ch 7	26	Section 295	7.27	7.27
Payment of penalty	Ch 9	14	Rule 3(xiv)	9.25	9.26
Payment proposal cannot be taken as approved if no quorum present	Ch 3	20	Section 191	3.69	3.69
Payment to Director for Loss of Office, etc. in Connection With Transfer of Undertaking, Property or Shares	Ch 3	20	Rule 17	3.68	3.68
PAYMENT TO DIRECTOR FOR LOSS OF OFFICE, ETC., IN CONNECTION WITH TRANSFER OF UNDERTAKING, PROPERTY OR SHARES	Ch 3	20	Section 191	3.67	3.67
Penalties.	FEMA	7	Section 13	1.81	1.81
Penalty - Consequence of termination or modifications of certain agreements	Ch 6	5	Section 243	6.15	6.15
Penalty & Consequences	SEBI Act	4	**Section 11**	1.09	1.09
Penalty for alteration destruction, etc., of records and failure to protect the electronic database of Board	SEBI Act	13	**Section 15HAA**	1.26	1.26
Penalty for article or currency or security obtained in contravention of section 10.	FCRA	8	Section 34	2.35	2.35
Penalty for certain defaults in case of mutual funds	SEBI Act	13	**Section 15D**	1.22	1.22
PENALTY FOR CONTRAVENTION	Ch 3	6C	Section 178	3.26	3.26
Penalty for Contravention	Ch 4	3	Section 207	4.08	4.08
Penalty for contravention [Section 189(6)]:	Ch 3	18	Section 189	3.65	3.66
Penalty for Contravention of Directions by an Authorised Person	FEMA	6		1.80	1.80
Penalty for contravention where no separate penalty has been provided	SEBI Act	13	**Section 15HB**	1.27	1.27
Penalty for Contravention:	Ch 7	6	Section 274	7.08	7.08
Penalty for default in case of alternative investment funds, infrastructure investment trusts and real estate investment trusts	SEBI Act	13	**Section 15EA**	1.23	1.23
Penalty for default in case of investment adviser and research analyst	SEBI Act	13	**Section 15EB**	1.24	1.24
Penalty for default in case of stock brokers	SEBI Act	13	**Section 15F**	1.24	1.24
Penalty for failure by any person to enter into agreement with clients	SEBI Act	13	**Section 15B**	1.21	1.21
Penalty for failure to furnish information, return, etc.	SEBI Act	13	**Section 15A**	1.21	1.21
Penalty for failure to observe rules and regulations by an asset management company	SEBI Act	13	**Section 15E**	1.23	1.23
Penalty for failure to redress investors' grievances	SEBI Act	13	**Section 15C**	1.21	1.21
Penalty for fraudulent and unfair trade practices	SEBI Act	13	**Section 15HA**	1.26	1.26
PENALTY FOR FURNISHING FALSE STATEMENT, MUTILATION, DESTRUCTION OF DOCUMENTS	Ch 4	23	Section 229	4.35	4.33

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Penalty for insider trading	SEBI Act	13	**Section 15G**	1.25	1.25
Penalty for insider trading	**SEBI Reg.**		**Section 15G**	**1.149**	1.154
Penalty for non-compliance	Ch 3	19	Section 190	3.66	3.66
Penalty for non-compliance	Ch 3	20	Section 191	3.69	3.69
Penalty for non-disclosure of acquisition of shares and takeovers	SEBI Act	13	**Section 15H**	1.25	1.25
Penalty for non-registration	Ch 5	8	Section 238	5.29	5.29
Penalty for offences where no separate punishment has been provided.	FCRA	8	Section 37	2.35	2.35
PENALTY FOR REPEATED DEFAULT	Ch 9	15	Section 454A	9.26	9.27
Performance Evaluation of the Board and its directors	SEBI Reg.	3 II		1.56	**1.57**
Period for applying for renewal of certificate	FCRA	4		2.26	2.26
Period for completion of insolvency process:	**IBC**	**3 VII(1)**	**Section 12**	**3.35**	3.36
Period for filing of appeal:	Ch 9	2	Section 421	9.05	9.05
Period for passing the order	Ch 9	14	Rule 3(vii)	9.24	9.24
Period for renewal of certificate	FCRA	4		2.27	2.27
Period of custody of inspector	Ch 4	13	Section 217	4.23	4.21
Period of extension:	**IBC**	**3 VII(3)**	**Section 12**	**3.36**	3.36
Period of filing reply to the notice:	Ch 9	14	Rule 3(iv)	9.23	9.23
Period of seizure	Ch 4	5	Section 209	4.10	4.10
Period of subscription	**SEBI Reg.**		**Regulation 142**	**1.117**	1.118
Period of subscription	SEBI Reg.		**Regulation 46**	1.91	1.92
Period within which export value of goods/software/ services to be realised:	**FEMA**	**5 (9)**	**Regulation 9**	**1.73**	1.73
Permission for receipt of foreign contribution in application for obtaining prior permission	**FCRA**	**4**	**Rule 9A**	**2.22**	2.22
Permission to make additional reports	Ch 7	13	Section 281	7.15	7.15
Person not eligible to be resolution applicant.	**IBC**	**3 XIV**	**Section 29A**	**3.53**	3.53
Person or Body corporate	FEMA	**4**		1.10	1.10
Person resident in India	FEMA	3	Definition	1.05	1.05
Person resident in India	FEMA	**4**		1.07	1.07
Person resident outside India	FEMA	3	Definition	1.06	1.06
Person resident outside India	FEMA	**4**		1.08	1.08
Persons liable to contribute to the assets if certain conditions are fulfilled	**Ch 7**	**17**	**Section 285**	**7.18**	7.18
Persons not entitled to make application.	IBC	3 IV	Section 11	3.34	3.34
Persons to whom section 3 shall not apply.	FCRA	3 II		2.12	2.12
Persons who can present Petition for winding up:	**Ch 7**	**4**	**Section 272**	**7.04**	7.04
Petition by contributory	**Ch 7**	**4**	**Section 272**	**7.04**	7.04
Petition by Registrar	**Ch 7**	**4**	**Section 272**	**7.05**	7.05
PETITION FOR WINDING UP.	**Ch 7**	**4**	**Section 272**	**7.04**	7.04
Petition presented by company	**Ch 7**	**4**	**Section 272**	**7.05**	7.05
Physical appearance	Ch 9	14	Rule 3(v)	9.23	9.23
Pledge of locked-in specified securities	SEBI Reg.	6	**Regulation 21**	1.85	1.86
Pledge of locked-in specified securities	SEBI Reg.		**Regulation 119**	1.107	1.107
Political contribution	**Ch 3**	**10**	**Section 182**	**3.36**	3.36
Political contribution - Deemed	**Ch 3**	**10**	**Section 182**	**3.37**	3.37
Post- issue reports	SEBI Reg.		**Regulation 151**	1.120	1.121
Post-issue Advertisements	SEBI Reg.		**Regulation 147**	1.119	1.120
Post-issue advertisements	SEBI Reg.		**Regulation 51**	1.93	1.94

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Post-issue reports (In module regulation is 54)	SEBI Reg.		**Regulation 55**	1.94	1.95
Post-issue responsibilities of the lead manager(s)	SEBI Reg.		**Regulation 148**	1.119	1.120
Post-listing exit opportunity for dissenting shareholders	SEBI Reg.		**Regulation 59**	1.97	1.97
POWER OF BOARD AND OTHER PERSONS TO MAKE CONTRIBUTIONS TO NATIONAL DEFENCE FUND, ETC.	**Ch 3**	**11**	**Section 183**	**3.39**	3.39
POWER OF CENTRAL GOVERNMENT TO APPOINT COMPANY PROSECUTORS.	Ch 9	8	Section 443	9.21	9.21
Power of Central Government to give directions.	FCRA	9	Section 46	2.38	2.38
Power of Central Government to give directions.	FEMA	9	Section 41	1.87	1.89
Power of Central Government to issue directions	SEBI Act	15	**Section 16**	1.39	1.39
Power of Central Government to prohibit receipt of foreign contribution, etc., in certain cases.	FCRA	3 V	Section 9	2.15	2.16
POWER OF CENTRAL GOVERNMENT TO PROVIDE FOR AMALGAMATION OF COMPANIES IN PUBLIC INTEREST	Ch 5	7	Section 237	5.26	5.26
Power of Central Government to require Aadhaar number, etc., as identification document.	FCRA	4	Section 12A	2.23	2.23
Power of Central Government to supersede the Board	SEBI Act	15	**Section 17**	1.39	1.39
Power of Inspector	Ch 4	12	Section 216	4.21	4.20
Power of registrar	**Ch 8**	**3 I**	**Section 248**	**8.13**	8.13
Power of Registrar to remove name of company from register of companies.	Ch 8	3 I	Section 248	8.13	8.13
Power of Reserve Bank to inspect authorised person.	**FEMA**	**6**	**Section 12**	**1.80**	1.80
Power of search, seizure, etc.	FEMA	9	Section 37	1.87	1.87
Power of SEBI to make or amend bye-laws of recognised stock exchanges	SEBI Act	4	**Section 11**	1.11	1.11
Power of the Registrar to call for information, explanation or documents	Ch 4	2	Section 206	4.03	4.03
Power of Tribunal to call for a meeting on an application filed for a compromise or arrangement	**Ch 5**	**2**	**Section 230**	**5.06**	5.06
POWER OF TRIBUNAL TO DECLARE DISSOLUTION OF COMPANY VOID.	**Ch 7**	**55**	**Section 356**	**7.53**	7.53
POWER OF TRIBUNAL TO ENFORCE COMPROMISE OR ARRANGEMENT	Ch 5	3	Section 231	5.13	5.13
Power of Tribunal to implement the order	Ch 5	3	Section 231	5.13	5.13
POWER OF TRIBUNAL TO MAKE CALLS.	Ch 7	27	Section 296	7.27	7.27
POWER TO ACQUIRE SHARES OF SHAREHOLDERS DISSENTING FROM SCHEME OR CONTRACT APPROVED BY MAJORITY	**Ch 5**	**5**	**Section 235**	**5.20**	5.20
Power to adjudicate	SEBI Act	13	**Section 15-I**	1.30	1.30
Power to approve the bye-laws of stock exchanges	SEBI Act	4	**Section 11**	1.11	1.11
Power to arrest	Ch 4	8	Section 212	4.17	4.16
Power to call for information or document.	FCRA	9	Section 42	2.37	2.37
POWER TO CALL FOR INFORMATION, INSPECT BOOKS AND CONDUCT INQUIRIES	Ch 4	2	Section 206	4.03	4.03
Power to call for periodical returns or direct enquiries to be made	SEBI Act	4	**Section 11**	1.10	1.10
Power to compound contravention.	FEMA	8	Section 15	1.84	1.84
POWER TO COMPROMISE OR MAKE ARRANGEMENTS WITH CREDITORS AND MEMBERS	**Ch 5**	**2**	**Section 230**	**5.06**	5.06
Power to delegate	SEBI Act	4	**Section 11**	1.11	1.11
Power to exempt in certain cases.	FCRA	9	Section 50	2.38	2.38
Power to grant immunity	SEBI Act	15	**Section 24B**	1.42	1.42
Power to impose additional fine where article or currency or security is not available for confiscation.	FCRA	8	Section 36	2.35	2.35
Power To Issue Directions And Levy Penalty	SEBI Act	7	**Section 11B**	1.13	1.13
Power to make regulations	SEBI Act	15	**Section 30**	1.47	1.48
Power to make rules	SEBI Act	15	**Section 29**	1.47	1.47

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Power to make rules.	FCRA	9	Section 48	2.38	2.38
Power to modify Act in its application to Nidhis.	Ch 8	5	Section 406	8.21	8.21
POWER TO ORDER COSTS.	Ch 7	29	Section 298	7.28	7.28
POWER TO ORDER EXAMINATION OF PROMOTERS, DIRECTORS, ETC.	**Ch 7**	**31**	**Section 300**	**7.29**	7.29
Power to prohibit payment of currency received in contravention of the Act.	FCRA	3 V	Section 10	2.16	2.16
Power to punish for contempt.	Ch 9	2	Section 425	9.08	9.08
Power to recover arrears of penalty	FEMA	7	Section 14A	1.83	1.84
Power to remove difficulties	SEBI Act	15	**Section 34**	1.48	1.49
Power to seek assistance of Chief Metropolitan Magistrate, etc.	Ch 9	2	Section 429	9.09	9.09
POWER TO SUMMON PERSONS SUSPECTED OF HAVING PROPERTY OF COMPANY, ETC.	Ch 7	30	Section 299	7.28	7.28
Power with respect to inspection of books and Documents	SEBI Act	4	**Section 11**	1.07	1.07
POWERS AND DUTIES OF COMPANY LIQUIDATOR.	Ch 7	21	Section 290	7.21	7.21
POWERS AND FUNCTIONS OF SEBI	SEBI Act	4		1.06	1.06
Powers of Adjudicating Authority	Ch 9	14	Rule 3(x)	9.24	9.25
Powers of Board - BoD is entitled to exercise the same powers as the company is authorised	Ch 3	7	Section 179	3.27	3.27
Powers of Board - Imposing of restrictions and conditions by the shareholders	Ch 3	7	Section 179	3.29	3.29
Powers of Board - Matters, also to be exercised only by means of resolutions passed at the meetings of the Board	**Ch 3**	**7**	**Rule 8**	**3.29**	3.29
Powers of Board - Permission to BoD to delegate some of its powers	**Ch 3**	**7**	**Section 179**	**3.29**	3.29
Powers of Board - Placing of restrictions on exercising of powers by the Board	Ch 3	7	Section 179	3.27	3.27
Powers of Board - Prospective effect of regulation made in general meeting	Ch 3	7	Section 179	3.27	3.27
Powers of Board to be exercised by means of resolutions	**Ch 3**	**7**	**Section 179**	**3.28**	3.28
POWERS OF INSPECTOR	Ch 4	15	Section 219	4.27	4.26
Powers of special courts with respect to trial of offences	Ch 9	3	Section 436	9.13	9.13
POWERS OF THE BOARD	Ch 3	7	Section 179	3.27	3.27
Powers of the Registrar or inspector	Ch 4	3	Section 207	4.08	4.07
POWERS OF TRIBUNAL	Ch 4	16	Section 221	4.29	4.28
POWERS OF TRIBUNAL	Ch 6	4	Section 242	6.11	6.11
POWERS OF TRIBUNAL.	**Ch 7**	**5**	**Section 273**	**7.06**	7.06
Powers to inspectors similar as are vested in a civil court	Ch 4	13	Section 217	4.23	4.22
Pre-requisites for passing an order of amalgamation	Ch 5	7	Section 237	5.28	5.28
Preamble of the Code	IBC	1	Basics	3.04	3.04
PREAMBLE, EXTENT, APPLICATION AND COMMENCEMENT OF FEMA, 1999	FEMA	2		1.03	1.03
PREFERENTIAL PAYMENTS.	**Ch 7**	**37**	**Section 327**	**7.36**	7.36
Prescribing of Procedure for the conduct of meeting, etc.	Ch 7	19	Section 287	7.20	7.20
Presentation of account of receipts and payments to the Tribunal:	**Ch 7**	**25**	**Section 294**	**7.26**	7.26
Presented before Special Court/JM/MM	Ch 4	8	Section 212	4.17	4.16
Preservation and custody:	Ch 3	18	Section 189	3.65	3.65
PRESERVATION OF BOOKS AND PAPERS OF AMALGAMATED COMPANIES	Ch 5	9	Section 239	5.30	5.30
Presiding Officer, members and staff of Securities Appellate Tribunals to be public servants	SEBI Act	14	**Section 15X**	1.38	1.38
Presumption as to documents in certain cases.	FEMA	9	Section 39	1.87	1.88
Price and Price Band	**SEBI Reg.**		**Regulation 127**	**1.110**	1.111
Price and Price Band	**SEBI Reg.**			**1.89**	1.90
Price stabilisation through green shoe option	**SEBI Reg.**		**Regulation 153**	**1.121**	1.122

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Price stabilisation through green shoe option	**SEBI Reg.**		**Regulation 57**	**1.94**	1.95
Pricing	SEBI Reg.		**Regulation 126**	1.110	1.111
PRICING	SEBI Reg.			1.110	1.111
PRICING	SEBI Reg.			1.89	1.90
Pricing guidelines	FEMA	5		1.53	1.53
Prior Intimation for alteration of securities	SEBI Reg.	6	**Regulation 29(3)**	1.59	1.59
PRIOR INTIMATION OF BOARD MEETING	SEBI Reg.	6		1.58	**1.60**
Prior Intimation of Board Meetings	SEBI Reg.	6	**Regulation 29(1)&(2)**	1.58	**1.60**
Private placement	SEBI Reg.			1.71	1.71
Procedure and powers of the Securities Appellate Tribunal	SEBI Act	14	**Section 15U**	1.37	1.37
Procedure before Tribunal and Appellate Tribunal.	Ch 9	2	Section 424	9.07	9.07
Procedure for confiscation.	FCRA	6	Section 30	2.32	2.32
Procedure for grant of certificate of Registration / Prior Permission	FCRA	4		2.21	2.21
Procedure required for a person who is eligible and willing to be appointed as an independent director	Ch 1	13	Rule 6	1.43	1.43
Procedure to be followed by the Financial creditor	**IBC**	**3 IIA(2)**	**Section 7**	**3.25**	3.25
Procedure to be followed In case of voluntary winding up of company	**Ch 7**	**51**	**Section 352**	**7.50**	7.50
Procedure to notify an organisation of a political nature.	FCRA	3 II		2.11	2.11
Procedure where certificate has lapsed or ceased to be valid:	FCRA	4		2.27	2.27
PROCEDURE, POWERS, ETC., OF INSPECTORS	Ch 4	13	Section 217	4.22	4.21
Process for seeking approval	Ch 2	9	Rule 7	2.32	2.32
Production of books and papers	Ch 7	30	Section 299	7.29	7.29
Profit - CALCULATION OF PROFITS	**Ch 2**	**8**	**Section 198**	**2.29**	2.29
Profit - Credit shall be given for the sums specified	**Ch 2**	**8**	**Section 198**	**2.29**	2.29
Profit - Credit shall not be given for those sums specified	**Ch 2**	**8**	**Section 198**	**2.29**	2.29
Profit - following sums specified under Section 198(4) shall be deducted	**Ch 2**	**8**	**Section 198**	**2.30**	2.30
Profit - following sums specified under Section 198(5) shall not be deducted	**Ch 2**	**8**	**Section 198**	**2.31**	2.31
Prohibited Acts:	IBC	3 X(3)	Section 14	3.39	3.39
Prohibition of acceptance of foreign contribution.	FCRA	8	Section 38	2.36	k previous
Prohibition of manipulative and deceptive devices, insider trading and substantial acquisition of securities or control	SEBI Act	11	**Section 12A**	1.19	1.19
Prohibition on investment outside India	FEMA	5		1.51	1.51
Prohibition on payment of incentives	SEBI Reg.		**Regulation 134**	1.114	1.115
Prohibition to accept foreign contribution.	FCRA	3 I		2.09	2.09
Prohibition to transfer foreign contribution to other person.	FCRA	3 IV	Section 7	2.14	2.14
PROHIBITIONS AND RESTRICTIONS REGARDING POLITICAL CONTRIBUTIONS	**Ch 3**	**10**	**Section 182**	**3.36**	3.36
Project exports	**FEMA**	**5 (17)**	**Regulation 17**	**1.77**	1.77
PROMOTERS, DIRECTORS, ETC., TO COOPERATE WITH COMPANY LIQUIDATOR.	Ch 7	16	Section 284	7.17	7.17
PROMOTERS' CONTRIBUTION	SEBI Reg.			1.81	1.82
PROMOTERS' CONTRIBUTION	SEBI Reg.			1.103	1.103
Property includes	Ch 5	4	Section 232	5.20	5.20
Protection of action taken in good faith	SEBI Act	15	**Section 23**	1.41	1.41
Protection of action taken in good faith.	Ch 9	2	Section 428	9.09	9.09
PROTECTION OF EMPLOYEES DURING INVESTIGATION	**Ch 4**	**14**	**Section 218**	**4.25**	4.24
Protection of employees during investigation - Action against employee	**Ch 4**	**14**	**Section 218**	**4.26**	4.25
Protection of employees during investigation - Appeal	Ch 4	14	Section 218	4.26	4.25

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Protection of employees during investigation - Approval of tribunal to take action against the employee:	**Ch 4**	**14**	**Section 218**	**4.26**	4.25
Protection of employees during investigation - Final and Binding order	Ch 4	14	Section 218	4.26	4.25
Protection of employees during investigation - Over-riding effect - protection of employee	Ch 4	14	Section 218	4.27	4.25
Providing of all information/documents to SFIO	Ch 4	8	Section 212	4.18	4.17
Providing of assistance to the inspector	Ch 4	13	Section 217	4.24	4.23
Providing of DIN and furnishing of Declaration by the proposed Director	Ch 1	3	Section 152	1.07	1.07
Providing of documents/ information	IBC	3 IIB(2)(ii)	Section 9	3.30	3.30
PROVISION FOR PROFESSIONAL ASSISTANCE TO COMPANY LIQUIDATOR.	Ch 7	22	Section 291	7.24	7.24
Provision for reciprocal arrangements	Ch 4	13	Section 217	4.24	4.23
PROVISION OF VALUE-ADDED SERVICES THROUGH ELECTRONIC FORM	Ch 10	4	Section 401	10.31	10.31
Provisions related to Managerial Personnel	Ch 10	2	Form	10.28	10.28
PROVISIONS RELATING TO FILING OF APPLICATIONS, DOCUMENTS, INSPECTION, ETC., IN ELECTRONIC FORM	Ch 10	2	Section 398	10.04	10.04
Public announcement of corporate insolvency resolution process - include & form	IBC	3 X	Section 15	3.40	3.40
Public announcement of corporate insolvency resolution process.	IBC	3 X	Section 15	3.40	3.40
Public issue	SEBI Reg.			1.70	1.70
Public Issue and listing of securities referred to in section 2 (h) (ie) of SCRA	SEBI Act	4	**Section 11**	1.11	1.11
Publication of Notice	Ch 2	9	Section 201	2.32	2.32
Publishing of notice for general public	Ch 8	3 I	Section 248	8.14	8.14
PUNISHMENT	Ch 1	20	Section 172	1.57	1.57
Punishment	Ch 4	13	Section 217	4.23	4.22
Punishment for Contravention	Ch 1	11	Section 165	1.34	1.34
Punishment for contravention	Ch 3	16	Section 187	3.55	3.55
Punishment for contravention	Ch 3	17	Section 188	3.63	3.63
Punishment for contravention of any provision of the Act.	FCRA	8	Section 35	2.35	2.35
PUNISHMENT FOR CONTRAVENTION OF SECTION 177	Ch 3	5C	Section 178	3.23	3.23
Punishment for fraud	**Ch 8**	**6 I**	**Section 447**	**8.31**	8.31
Punishment for non-compliance	Ch 6	6	Section 245	6.18	6.18
Punishment for not accomplishing statutory duties	Ch 1	14	Section 166	1.47	1.47
Punishment for not filing of the statement of affairs	Ch 7	6	Section 274	7.07	7.07
Punishment in case of contravention	Ch 6	4	Section 242	6.13	6.13
Punishment in case of contravention of order of tribuna	Ch 4	16(1)	Section 221	4.30	4.28
Punishment in case of contravention to an order	Ch 4	16(2)	Section 222	4.30	4.29
Punishment in case of guilty	Ch 4	9	Section 213	4.20	4.19
Punishment where no specific penalty or punishment is provided	Ch 8	6 II	Section 450	8.31	8.31
PURCHASE OF MINORITY SHAREHOLDING	**Ch 5**	**6**	**Section 236**	**5.23**	5.23

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Qualification for appointment as Presiding Officer or Member of Securities Appellate Tribunal	SEBI Act	14	**Section 15M**	1.32	1.32
QUARTERLY COMPLIANCES	SEBI Reg.	5		1.57	**1.59**
Quorum - Adjournment of meeting which could not be held for want of quorum	**Ch 3**	**3**	**Section 174**	**3.14**	3.14
Quorum - Exemption to OPC	Ch 3	3	Section 174	3.14	3.14
Quorum - interested directors (in case of)	**Ch 3**	**3**	**Section 174**	**3.13**	3.13
Quorum - Participation through electronic means to be counted for Quorum	**Ch 3**	**3**	**Section 174**	**3.13**	3.13
Quorum - Vacancy in the Board	**Ch 3**	**3**	**Section 174**	**3.13**	3.13
QUORUM FOR MEETINGS OF BOARD	**Ch 3**	**3**	**Section 174**	**3.12**	3.12
Realisation and repatriation of foreign exchange.	FEMA	5	Section 8	1.77	1.78
Realisation of amount	Ch 8	3 I	Section 248	8.14	8.14
Reasonable opportunity of being heard	**Ch 9**	**2**	**Section 420**	**9.04**	9.04
Reasonable opportunity of being heard to be given the Provisional Liquidator	Ch 7	8	Section 276	7.10	7.10
Reasonable opportunity of representations given to registrar:	**Ch 8**	**3 V**	**Section 252**	**8.18**	8.18
Reasons to be recorded for delay	Ch 9	2	Section 422	9.06	9.06
Reasons to supersede the Board	**SEBI Act**	**15**	**Section 17**	**1.39**	1.39
Receipt of payment in contravention of Section 191	Ch 3	20	Section 191	3.69	3.69
Receiving of copy of the investigation report by making an application to the court	Ch 4	8	Section 212	4.17	4.16
Reconstitution of Board on the expiration of the period of supersession	SEBI Act	15	**Section 17**	1.40	1.40
Reconstruction	Ch 5	1	Meaning	5.02	5.02
Record Date or Date of Closure of Transfer Books	SEBI Reg.	6	**Regulation 42(2)**	1.59	**1.61**
Recovery of amounts	**SEBI Act**	**15**	**Section 28A.**	**1.45**	1.45
Recovery of loss or damage from Liquidator	Ch 7	8	Section 276	7.09	7.09
Reference date	SEBI Reg.	1	**Regulation 4**	1.74	1.74
Reference date	SEBI Reg.		**Regulation 101**	1.97	1.97
Refund Form	Ch 10	2	Form	10.30	10.30
Refund of Deposit	**Ch 1**	**5**	**Section 160**	**1.20**	1.20
Refund of security to applicant	**Ch 4**	**6**	**Rule 5**	**4.12**	4.12
Regarding declaration and distribution of dividend by TML, whether the company has violated the various timelines as provided in the Act?	**Ch 10**	**8**	**Case Study**	**10.52**	10.52
REGISTER OF CONTRACTS OR ARRANGEMENTS IN WHICH DIRECTORS ARE INTERESTED	Ch 3	18	Section 189	3.64	3.64
REGISTER OF DIRECTORS AND KEY MANAGERIAL PERSONNEL AND THEIR SHAREHOLDING	Ch 1	18	Section 170	1.54	1.54
Register to be produced at AGM	Ch 3	18	Section 189	3.65	3.65
REGISTERED VALUER	**Ch 8**	**2**	**Section 247**	**8.02**	8.02
Registrar to notify the order of Tribunal in Official Gazette:	Ch 7	9	Section 277	7.10	7.10
REGISTRATION	FCRA	4		2.17	2.17
Registration of certain persons with Central Government.	FCRA	4	Section 11	2.18	2.18
Registration of circular / offer involving transfer of shares	Ch 5	8	Section 238	5.29	5.29
REGISTRATION OF OFFER OF SCHEMES INVOLVING TRANSFER OF SHARES	Ch 5	8	Section 238	5.29	5.29
Registration of stock brokers, sub-brokers, share transfer agents, etc.	SEBI Act	10	**Section 12**	1.18	1.18
REGULATION AND MANAGEMENT OF FOREIGN EXCHANGE	FEMA	5		1.12	1.12
REGULATION OF FOREIGN CONTRIBUTION AND FOREIGN HOSPITALITY	FCRA	3		2.09	2.09
Regulations	SEBI Reg.	3		1.50	1.50

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Related Party - Meaning	Ch 3	17	Section 188	3.56	3.56
Related Party - No voting by a related member	**Ch 3**	**17**	**Section 188**	**3.61**	3.61
Related Party - Transactions between a holding company and its wholly owned subsidiary	**Ch 3**	**17**	**Section 188**	**3.62**	3.62
RELATED PARTY TRANSACTIONS	**Ch 3**	**17**	**Section 188**	**3.55**	3.55
Related Party Transactions	**SEBI Reg.**	**8**	**Regulation 23**	**1.61**	**1.63**
Related Party Transactions for which no approval is required	**Ch 3**	**17**	**Section 188**	**3.58**	3.58
Related Party Transactions requiring approval by ordinary resolution	**Ch 3**	**17**	**Section 188**	**3.59**	3.59
Related Party Transactions requiring consent of the Board	**Ch 3**	**17**	**Section 188**	**3.58**	3.58
Related party transactions to which Section 188 is applicable	**Ch 3**	**17**	**Section 188**	**3.57**	3.57
Related party transactions voidable at the option of the Board/shareholders [Section 188 (3)]	**Ch 3**	**17**	**Section 188**	**3.63**	3.63
Related party, in relation to a corporate debtor	IBC	2	Definition	3.18	3.18
Related party, in relation to a individual	IBC	2	Definition	3.19	3.19
Relationship between Bankruptcy, Insolvency & Liquidation	IBC	1	Basics	3.03	3.03
Relaxation of restriction - Non Cash Txn	**Ch 3**	**21**	**Section 192**	**3.70**	**3.70**
Release of subscription money	SEBI Reg.		**Regulation 149**	1.120	1.121
Release of subscription money	**SEBI Reg.**		**Regulation 53**	**1.93**	1.94
Relevant information	IBC	3 XII	Section 29	3.46	3.47
RELEVANT TERMINOLOGIES	SEBI Reg.		**Regulation 2**	1.123	1.124
REMOVAL AND REPLACEMENT OF LIQUIDATOR.	Ch 7	8	Section 276	7.09	7.09
REMOVAL OF DIRECTORS- By Shareholders	Ch 1	17	Section 169	1.51	1.52
REMOVAL OF DIRECTORS- By tribunal	Ch 1	17	Section 169	1.54	1.54
Removal of member from office	SEBI Act	3	**Section 6**	1.05	1.05
REMOVAL OF NAMES OF COMPANIES FROM THE REGISTER OF COMPANIES	Ch 8	3	Section 248	8.13	8.13
Removal of Provisional Liquidator or the Company Liquidator	Ch 7	8	Section 276	7.09	7.09
Remuneration	Ch 2	1	Section 2(78)	2.04	2.04
Remuneration - Auditors' report to contain a statement regarding remuneration	**Ch 2**	**6**	**Section 197**	**2.27**	2.27
Remuneration - Deeming provision as to the holding of shares:	**Ch 2**	**6**	**Section 197**	**2.20**	2.20
Remuneration - Determination of Remuneration	Ch 2	6	Section 197	2.21	2.21
Remuneration - Disclosure in Board's Report by a Listed Company	Ch 2	6	Section 197	2.25	2.25
Remuneration - Exclusion of sitting fees	**Ch 2**	**6**	**Section 197**	**2.17**	2.17
Remuneration - Exemption/Modification	Ch 2	6	Section 197	2.28	2.28
Remuneration - Mode of payment of Remuneration	Ch 2	6	Section 197	2.23	2.23
Remuneration - No profits or inadequate profits	**Ch 2**	**6**	**Section 197**	**2.17**	2.17
Remuneration - Overall Maximum Managerial Remuneration	**Ch 2**	**6**	**Section 197**	**2.17**	2.16
Remuneration - OVERALL MAXIMUM MANAGERIAL REMUNERATION AND MANAGERIAL REMUNERATION IN CASE OF ABSENCE OR INADEQUACY OF PROFITS	Ch 2	6	Section 197	2.16	2.15
Remuneration - Parameters for consideration of remuneration	Ch 2	5	Rule 6	2.15	2.15
Remuneration - Penalty for non-compliance	Ch 2	6	Section 197	2.27	2.27
Remuneration - Premium paid in respect of Insurance taken for indemnification	Ch 2	6	Section 197	2.27	2.27
Remuneration - RECOVERY OF MANAGERIAL REMUNERATION IN CERTAIN CASES	Ch 2	7	Section 199	2.29	2.29
Remuneration - Refund of excess remuneration if paid to a director	**Ch 2**	**6**	**Section 197**	**2.24**	2.24
Remuneration - Remuneration/Commission permissible from holding/subsidiary company	Ch 2	6	Section 197	2.27	2.27

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Remuneration - SECTION II OF PART II OF SCHEDULE V	**Ch 2**	**6**	**Section 197**	**2.18**	2.18
Remuneration - Sitting Fees to Directors	**Ch 2**	**6**	**Section 197**	**2.22**	2.22
Remuneration for holiday / absence from work to be deemed to be wages	**Ch 7**	**37**	**Section 327**	**7.38**	7.38
Remuneration of ID	**Ch 1**	**12**	**Section 149**	**1.40**	1.40
Renewal of certificate.	FCRA	4	Section 16	2.26	2.26
Report of inspector	Ch 4	15 (1)	Section 219	4.28	4.27
REPORT ON INSPECTION MADE	Ch 4	4	Section 208	4.08	4.08
Report on viability of business of the company	Ch 7	13	Section 281	7.15	7.15
Report to be in writing or printed	Ch 4	17	Section 223	4.31	4.29
Reporting by banks of receipt of foreign contribution	FCRA	5		2.28	2.28
Reporting of transactions of the promoters and promoter group	SEBI Reg.		**Regulation 54**	1.94	1.94
Reporting requirements for Overseas Investment–	FEMA	5	Regulation 10	1.66	1.66
Requirement of Deposit	**Ch 1**	**5**	**Section 160**	**1.19**	1.19
Requirement of higher number	**Ch 1**	**12**	**Section 149**	**1.35**	1.35
Requirement of minimum promoters' contribution not applicable in certain cases	SEBI Reg.		**Regulation 112**	1.103	1.103
Requirement of Written Notice	**Ch 1**	**5**	**Section 160**	**1.19**	1.19
Requirements for consideration of application	Ch 6	6	Section 245	6.17	6.17
Requirements for investment to be specified by Reserve Bank–	FEMA	5		1.55	1.55
Requisite number of members to apply	Ch 6	6	Section 245	6.16	6.16
Reservation on a competitive basis	SEBI Reg.		**Regulation 130**	1.113	1.113
Reserve Bank's powers to issue directions to authorised person.	FEMA	6	Section 11	1.79	1.80
Resident Director	**Ch 1**	**2**	**Section 149**	**1.05**	1.05
RESIDENTIAL STATUS UNDER FEMA, 1999	FEMA	**4**		1.07	1.07
Resignation - All the Directors tendering resignation	Ch 1	16	Section 168	1.51	1.51
Resignation - Effective date of resignation	**Ch 1**	**16**	**Section 168**	**1.51**	1.51
Resignation - Signing & Filing of Form DIR-11 in case of a Foreign Director	**Ch 1**	**16**	**Section 168**	**1.50**	1.50
Resignation and removal	SEBI Act	14	**Section 15Q**	1.35	1.35
RESIGNATION OF DIRECTOR	**Ch 1**	**16**	**Section 168**	**1.50**	1.50
Resolution by circulation - Noting of passed resolution in next meeting	**Ch 3**	**4**	**Section 175**	**3.16**	3.16
Resolution by circulation - Requirements to pass resolution by circulation	**Ch 3**	**4**	**Section 175**	**3.16**	3.16
Resolution by circulation - When a resolution cannot be passed by circulation	**Ch 3**	**4**	**Section 175**	**3.16**	3.16
Resolution Plan	**IBC**	**3 XV**	**Section 5(26)**	**3.56**	3.56
Resolution professional - Appointment	IBC	3 XII	Section 22	3.43	3.43
Resolution professional - Appointment of Interim Resolution Professional	IBC	3 VIII	**Section 12**	3.36	3.37
Resolution professional - Appointment, terms and power of interim resolution professional.	IBC	3 XI	Section 16	3.40	3.41
Resolution professional - Duties of resolution professional.	IBC	3 XII	Section 25	3.44	3.45
Resolution professional - Duties to be performed by the Interim Resolution Professional	IBC	3 XI	Section 18	3.40	3.41
Resolution professional - Eligibility of an insolvency Professional to be appointed as a Resolution Professional	IBC	3 XII	Regulation 3	3.45	3.45
Resolution professional - Fees of Resolution Professional	IBC	3 XII	Section 5(13)	3.45	3.46
Resolution professional - Management of affairs of corporate debtor by interim resolution professiona	IBC	3 XI	Section 17	3.41	3.41
Resolution professional - Period of appointment of IRP	IBC	3 XI	Section 16	3.40	3.41
Resolution professional - Replacement of resolution professional by committee of creditors.	IBC	3 XII	Section 27	3.45	3.46

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Resolution professional - Roles & duties of RP	IBC	3 XII	Section 25	3.44	3.44
Restoration of name of company	**Ch 8**	**3 V**	**Section 252**	**8.18**	8.18
Restriction on acceptance of foreign hospitality.	FCRA	3 III		2.13	2.13
Restriction on acquiring assets for consideration other than cash	**Ch 3**	**21**	**Section 192**	**3.69**	**3.70**
Restriction on acquisition or transfer of immovable property outside India	FEMA	5		1.55	1.55
Restriction on further capital issues	SEBI Reg.		**Regulation 152**	1.120	1.121
Restriction on further capital issues	SEBI Reg.		**Regulation 56**	1.94	1.95
Restriction on further financial commitment or transfer	FEMA	5	Regulation 12	1.68	1.68
RESTRICTION ON NON-CASH TRANSACTIONS INVOLVING DIRECTORS	**Ch 3**	**21**	**Section 192**	**3.69**	**3.70**
Restriction on number of memberships	**SEBI Reg.**	**3**	**Regulation 26**	**1.52**	**1.54**
Restriction to utilise foreign contribution for administrative purpose.	**FCRA**	**3 V**	**Section 8**	**2.14**	2.14
Restrictions and prohibitions	FEMA	5		1.54	1.54
RESTRICTIONS ON COMMUNICATION AND TRADING BY INSIDERS	SEBI Reg.			1.138	1.141
Restrictions on making application under section 248 in certain situations.	Ch 8	3 II	Section 249	8.16	8.16
RESTRICTIONS ON POWERS OF BOARD	**Ch 3**	**8**	**Section 180**	**3.31**	3.31
Restructuring	FEMA	5		1.54	1.54
Retirement by rotation	**Ch 1**	**12**	**Section 149**	**1.42**	1.42
Retirement from office of rotational director	**Ch 1**	**3**	**Section 152**	**1.08**	1.08
Retirement of Directors by Rotation [Section 152(6)]	**Ch 1**	**3**	**Section 152**	**1.08**	1.08
Retrospective effect of order	Ch 5	3	Section 231	5.14	5.14
Returns and reports	SEBI Act	15	**Section 18**	1.40	1.40
Revision of orders by Central Government.	FCRA	7	Section 32	2.33	2.33
Right of Advisory Committee to inspect:	Ch 7	19	Section 287	7.20	7.20
Right of member to apply to the Tribunal:	**Ch 6**	**2**	**Section 241**	**6.05**	6.05
Right of person advancing money for making certain payments	**Ch 7**	**37**	**Section 327**	**7.37**	7.37
RIGHT OF PERSONS OTHER THAN RETIRING DIRECTORS TO STAND FOR DIRECTORSHIP	**Ch 1**	**5**	**Section 160**	**1.19**	1.19
Right of shareholders to make an offer for sale of minority equity shareholding	**Ch 5**	**6**	**Section 236**	**5.24**	5.24
RIGHT TO APPLY UNDER SECTION 241	**Ch 6**	**3**	**Section 244**	**6.09**	6.09
Right to legal representation	SEBI Act	14	**Section 15V**	1.38	1.38
Right to legal representation.	Ch 9	2	Section 432	9.10	9.10
Right to vote and participate to the authorize representative in CoC Meetings	IBC	3 XIII	Section 25A	3.52	3.52
Rights and Benefits of Minority Shareholders	Ch 6	1	Basics	6.04	6.04
Rights and duties of authorised representative of financial creditors.	IBC	3 XIII	Section 25A	3.52	3.52
Rights issue	SEBI Reg.			1.70	1.71
Rights issue and bonus shares	FEMA	5		1.50	1.50
Risk Management Committee.	SEBI Reg.	9D	**Regulation 21**	1.68	**1.69**
Roll over of non-convertible portion of partly convertible debt instruments	**SEBI Reg.**		**Regulation 108**	**1.101**	1.101
Rule of Majority	**Ch 6**	**1**	**Basics**	**6.02**	6.02
Rules and regulations to be laid before Parliament	SEBI Act	15	**Section 31**	1.48	1.48

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Salary and allowances and other terms and conditions of service of Presiding Officers	SEBI Act	14	**Section 15O**	1.34	1.34
Salient Features of the Act	FEMA	1		1.02	1.02
Savings	SEBI Act	15	**Section 21**	1.41	1.41
Schedule I - Manner of making Overseas Direct Investment by Indian entity	FEMA	5		1.56	1.56
SCHEDULE I - Transactions for which drawal of foreign exchange is prohibited	FEMA	5		1.16	1.16
Schedule II - Manner of making Overseas Portfolio Investment (OPI) by an Indian entity	**FEMA**	**5**		**1.58**	1.58
SCHEDULE II - Transactions, which require prior approval of Government of India	FEMA	5		1.16	1.16
SCHEDULE III - Facilities for individuals - Transactions require RBI's prior approval	FEMA	5		1.17	1.17
SCHEDULE III - Facilities for persons other than individual - Transactions which require RBI's prior approva	FEMA	5		1.18	1.18
Schedule III - Manner of making Overseas Investment by resident individual	**FEMA**	**5**		**1.58**	1.58
SCHEDULE III - Procedure for drawal or remittance of any foreign exchange under this schedule shall be same as applicable for remitting any amount under the said Liberalised Remittance Scheme	FEMA	5		1.19	1.19
Schedule IV - Overseas Investment by person resident in India other than Indian entity and resident Individual	FEMA	5		1.60	1.60
Schedule V - Overseas Investment in IFSC by person resident in India	FEMA	5		1.61	1.61
Scheme involcing a division	Ch 5	4	Section 232	5.19	5.19
Scheme of merger or amalgamation may be entered, subject to following conditions:	Ch 5	11	Section 233	5.32	5.32
Scheme/contract made before the commencement of Act	**Ch 5**	**5**	**Section 235**	**5.22**	5.22
Scope	SEBI Reg.	1		1.49	1.50
SEARCH AND SEIZURE	Ch 4	5	Section 209	4.09	4.09
SEBI (LISTING OBLIGATIONS AND DISCLOSURE REQUIREMENTS) REGULATIONS, 2015	SEBI Reg.			1.49	1.49
Sec-8 Co. - Security deposit-160 Clarification	**Ch 1**	**5**	**Section 160**	**1.20**	1.20
Secretarial Audit and Secretarial Compliance Report	SEBI Reg.	8	**Regulation 24A**	1.65	**1.66**
SECRETARIAL AUDIT FOR BIGGER COMPANIES	Ch 2	11	Section 204	2.34	2.34
SECTION I - Remuneration payable by companies having profits	**Ch 2**	**12**	**Schedule V**	**2.36**	2.36
SECTION II - Remuneration payable by companies having no profit or inadequate profit	**Ch 2**	**12**	**Schedule V**	**2.36**	2.36
SECTION III — Remuneration payable by companies having no profit or inadequate profit in certain special circumstances	**Ch 2**	**12**	**Schedule V**	**2.36**	2.36
SECTION IV— Perquisites not included in managerial remuneration	**Ch 2**	**12**	**Schedule V**	**2.37**	2.37
SECTION V—Remuneration payable to a managerial person in two companies	**Ch 2**	**12**	**Schedule V**	**2.39**	2.39
SECURITIES AND EXCHANGE BOARD OF INDIA (ISSUE OF CAPITAL AND DISCLOSURE REQUIREMENTS) REGULATIONS, 2018	SEBI Reg.			1.70	1.70
SECURITIES AND EXCHANGE BOARD OF INDIA (PROHIBITION OF INSIDER TRADING) REGULATIONS, 2015	SEBI Reg.			1.135	1.137
Securities ineligible for minimum promoters' contribution	SEBI Reg.		**Regulation 114**	1.105	1.105
Security deposit	**SEBI Reg.**		**Regulation 135**	**1.114**	1.115
SECURITY FOR PAYMENT OF COSTS AND EXPENSES OF INVESTIGATION	Ch 4	10	Section 214	4.20	4.19
Seeking approval of CoC	IBC	3 XV	Section 30	3.58	3.58
Seizure of documents by inspector	**Ch 4**	**15 (2)**	**Section 220**	**4.28**	4.27
Send the copy of order to parties concerned	**Ch 9**	**2**	**Section 420**	**9.04**	9.04
Separate Bank account for disbursement to entitled shareholders	**Ch 5**	**5**	**Section 235**	**5.22**	5.22
SERIOUS FRAUD INVESTIGATION OFFICE	Ch 9	7	Section 211+212	9.20	9.20

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Serving of demand Notice	**IBC**	**3 IIB(1)**	**Section 8**	**3.30**	3.30
Setting up of Serious Fraud Investigation Office (SFIO	Ch 4	7	Section 211	4.13	4.12
Settlement of administrative and civil proceedings	SEBI Act	13	**Section 15JB**	1.31	1.31
SETTLEMENT OF LIST OF CONTRIBUTORIES AND APPLICATION OF ASSETS.	**Ch 7**	**17**	**Section 285**	**7.18**	7.18
Share Transfer Agent	SEBI Reg.	4	**Regulation 7**	1.56	**1.59**
Sharing of additional compensation	**Ch 5**	**6**	**Section 236**	**5.25**	5.25
Sharing of information by SFIO	Ch 4	8	Section 212	4.18	4.17
Short title and commencement:	FEMA	5 (1)		1.69	1.69
Short title, extent and commencement	SEBI Act	1	**Section 1**	1.02	1.02
Short title, extent and commencement.	IBC	1	Section 1	3.09	3.09
Short title, extent, application and commencement.	FCRA	1	Section 1	2.04	2.04
Short title, extent, application and commencement.	FEMA	2	Section 1	1.03	1.03
Significant accounting transaction	**Ch 8**	**6 III**	**Section 455**	**8.33**	8.33
Small shareholder - Applicability of section 152	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
Small shareholder - Applicability of Section 164	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
Small shareholder - Appointment of small shareholders' director	**Ch 1**	**6**	**Rule 7**	**1.22**	1.22
Small shareholder - Cooling period	**Ch 1**	**6**	**Section 151**	**1.23**	1.23
Small shareholder - Maximum number of directorshipsSmall shareholder	**Ch 1**	**6**	**Section 151**	**1.23**	1.23
Small shareholder - Serving of notice by small shareholder	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
Small shareholder - Statement to be annexed with notice	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
Small shareholder - Strength of Small Shareholders required for appointment of their Directo	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
Small shareholder - Vacation of office	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
Small shareholders' director as independent director	**Ch 1**	**6**	**Section 151**	**1.22**	1.22
SPECIAL COURT	Ch 9	3	Section 435-438	9.12	9.12
Special Court to try an offence other than an offence under this Act	Ch 9	3	Section 436	9.14	9.14
Speculative activities	**FCRA**	**3 V**	**Rule 4 - FCR 2014**	**2.14**	**2.14**
Speedy disposal	**Ch 9**	**2**	**Section 422**	**9.06**	9.06
Staff of the Securities Appellate Tribunal	SEBI Act	14	**Section 15S**	1.36	1.36
STAKEHOLDERS RELATIONSHIP COMMITTEE	Ch 3	6B	Section 178	3.26	3.26
Stakeholders Relationship Committee.	SEBI Reg.	9C	**Regulation 20**	1.67	**1.68**
Statement of Deviation(S) Or Variation(S)	SEBI Reg.	5	**Regulation 32(1)**	1.57	**1.60**
STATEMENT THAT COMPANY IS IN LIQUIDATION.	**Ch 7**	**47**	**Section 344**	**7.47**	7.47
STAY OF SUITS, ETC., ON WINDING UP ORDER.	**Ch 7**	**11**	**Section 279**	**7.13**	7.13
Strike off of names from register of companies	Ch 8	3 I	Section 248	8.14	8.14
Submission of approved final report before the Tribunal for passing of dissolution order	Ch 7	9	Section 277	7.12	7.12
Submission of export documents	**FEMA**	**5 (10)**	**Regulation 10**	**1.74**	1.74
Submission of interim report and final report	Ch 4	17	Section 223	4.31	4.29
Submission of Interim Report to CG	Ch 4	8	Section 212	4.17	4.16
Submission of investigation report to CG:	Ch 4	8	Section 212	4.17	4.16
SUBMISSION OF PERIODICAL REPORTS TO TRIBUNAL.	Ch 7	20	Section 288	7.20	7.20
Submission of report and minutes of meetings of the committee before Tribunal on monthly basis	Ch 7	9	Section 277	7.12	7.12
SUBMISSION OF REPORT BY COMPANY LIQUIDATOR.	Ch 7	13	Section 281	7.14	7.14
Submission of Report to CG	Ch 4	8	Section 212	4.16	4.15
Submission of resolution plan.	IBC	3 XV	Section 30	3.59	3.59

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Substantial acquisition of shares or voting rights	SEBI Reg.		**Regulation 3**	1.126	1.127
SUBSTANTIAL ACQUISITION OF SHARES, VOTING RIGHTS OR CONTROL	SEBI Reg.			1.126	1.127
Substantial powers of management	Ch 2	1	Section 2(54)	2.03	2.03
Suit or legal proceeding can be commenced after winding up order/appointment of liquidator only with permission of Tribunal	**Ch 7**	**11**	**Section 279**	**7.13**	7.13
Sum to be credited to the Consolidated Fund of India	Ch 9	14	Rule 3(xv)	9.25	9.26
Summary Trial	**Ch 9**	**3**	**Section 436**	**9.14**	9.14
Summon by Tribunal	Ch 7	30	Section 299	7.28	7.28
Summons from Company Liquidator	Ch 7	23	Section 292	7.25	7.25
Surrender - Voluntary surrender of certificate	FCRA	4		2.25	2.25
Surrender of certificate.	FCRA	4	Section 14A	2.25	2.25
Suspension - Circumstances when certificate may be suspended	FCRA	4		2.23	2.23
Suspension - Effect of suspension	FCRA	4		2.23	2.23
Suspension - Extent of amount that can be utilised in case of suspension of the certificate of registration.	**FCRA**	**4**	**Rule 14**	**2.23**	2.23
Suspension of certificate.	FCRA	4	Section 13	2.23	2.23
Suspension of initiation of corporate insolvency resolution process.	IBC	3 III	Section 10A	3.33	3.33
Suspension of operation of this Act.	FEMA	9	Section 40	1.87	1.88

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Taking of copies, placing identification marks	Ch 4	5	Section 209	4.10	4.10
Tenure - ID	**Ch 1**	**12**	**Section 149**	**1.41**	1.41
Tenure of office of Presiding Officer and other members of Securities Appellate Tribunal	SEBI Act	14	**Section 15N**	1.34	1.34
Term of office and conditions of service of Chairman and members of the Board	SEBI Act	3	**Section 5**	1.04	1.04
Terms and conditions of service - SFIO	Ch 4	7	Section 211	4.14	4.13
The Nidhi Rules, 2014	Ch 8	5	Rule	8.22	8.22
THE SECURITIES AND EXCHANGE BOARD OF INDIA (SUBSTANTIAL ACQUISITION OF SHARES AND TAKEOVERS) REGULATIONS, 2011	SEBI Reg.			1.123	1.124
The supply of essential goods or services	IBC	3 X(2)	Section 14	3.38	3.39
Threshold limits for acquisition of shares/voting rights	SEBI Reg.		**Regulation 3**	1.126	1.127
Time limit for passing an order:	**Ch 7**	**5**	**Section 273**	**7.06**	7.06
Time period for determination of default:	IBC	3 IIA(3)	Section 7	3.25	3.25
Time period for the receipt of the copies of the compromise or arrangement	**Ch 5**	**2**	**Section 230**	**5.09**	5.09
Time-limit for completion of insolvency resolution process.	**IBC**	**3 VII**	**Section 12**	**3.35**	3.36
To act in the interest of Financial Creditor	IBC	3 XIII	Section 25A	3.53	3.53
To circulate the agenda and minutes	IBC	3 XIII	Section 25A	3.52	3.52
To examine whether the Rule 9(A) (3) (a) of the Companies (Prospects and Allotment of Securities) Rules 2014 shall apply to Y (Pvt.) Ltd.	**Ch 10**	**8**	**Case Study**	**10.55**	10.55
To provide all information, explanation, documents and assistance to the Investigating Officer	Ch 4	8	Section 212	4.16	4.15
Trading Plans	**SEBI Reg.**		**Regulation 5**	**1.142**	1.145
Trading when in possession of unpublished price sensitive information	**SEBI Reg.**		**Regulation 4**	**1.140**	1.144
Transfer of certain pending proceedings.	Ch 9	2	Section 434	9.10	9.10
Transfer of documents	FEMA	5 (11)	Regulation 11	1.74	1.74
Transfer of money into the Company Liquidation Dividend and Undistributed Assets Account	**Ch 7**	**51**	**Section 352**	**7.49**	7.49
Transfer of unclaimed money paid into company Liquidation Dividend and Undistributed Assets Account to General Revenue account of CG:	**Ch 7**	**51**	**Section 352**	**7.50**	7.50
Transfer of work of Liquidator	Ch 7	8	Section 276	7.09	7.09
Transfer or liquidation.	FEMA	5		1.53	1.53
Transferability of locked-in specified securities	SEBI Reg.	6	**Regulation 22**	1.86	1.87
Transferability of locked-in specified securities	SEBI Reg.		**Regulation 120**	1.107	1.107
TRANSFERS NOT IN GOOD FAITH TO BE VOID.	**Ch 7**	**39**	**Section 329**	**7.39**	7.39
TRANSFERS, ETC., AFTER COMMENCEMENT OF WINDING UP TO BE VOID.	**Ch 7**	**44**	**Section 334**	**7.44**	7.44
Transitional Provisions	SEBI Act	15	**Section 26E.**	1.44	1.44
Tribunal make order for any other remedy on just and equitable ground:	**Ch 7**	**5**	**Section 273**	**7.07**	7.07
Tribunal may by order put restrictions upon securities	Ch 4	16(2)	Section 222	4.30	4.29
Tribunal may dispense with calling of a meeting	**Ch 5**	**2**	**Section 230**	**5.12**	5.12
Tribunal may order an indebted person to pay money or a person to deliver company's property if he possesses it	Ch 7	30	Section 299	7.29	7.29
Tribunal may order company to file a statement of its affairs:	**Ch 7**	**6**	**Section 274**	**7.07**	7.07
Tribunal may order for investigation against the company in respect of commission of fraud	Ch 7	14	Section 282	7.16	7.16
Tribunal may pass such other order / directions as it may consider fit:	Ch 7	14	Section 282	7.16	7.16
Tribunal may restrict the powers of a Provisional Liquidator	Ch 7	7	Section 275	7.08	7.08
Tribunal not to refuse to make a winding up order:	**Ch 7**	**5**	**Section 273**	**7.07**	7.07
Tribunal regulate their own procedure based on natural justice	Ch 9	2	Section 424	9.07	9.07

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Tribunal to cause intimation of its order:	Ch 7	9	Section 277	7.10	7.10
Tribunal to direct for appointment of Advisory Committee	Ch 7	19	Section 287	7.19	7.19
Tribunal to pass an order to pay any money due	Ch 7	26	Section 295	7.27	7.27
Tribunal to specify the terms and conditions of appointment of Provisional Liquidator:	Ch 7	7	Section 275	7.08	7.08
Tribunal to take measures to safeguard the assets of the company	Ch 7	14	Section 282	7.16	7.16
Types of Amalgamations	Ch 5	1	Basics	5.03	5.03
TYPES OF COMMITTEES UNDER LODR REGULATIONS	SEBI Reg.	9		1.65	**1.67**
Underwriting	SEBI Reg.		**Regulation 136**	1.115	1.115
Unpaid money in the hands of liquidator to be deposited forthwith into a separate special account	**Ch 7**	**51**	**Section 352**	**7.49**	7.49

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Vacancies, etc., not to invalidate proceedings of Board	SEBI Act	3	**Section 8**	1.06	1.06
Vacancy in Tribunal or Appellate Tribunal not to invalidate acts or proceedings.	Ch 9	2	Section 431	9.10	9.10
Vacation - Additional ground for vacation by a private company	**Ch 1**	**15**	**Section 167**	**1.50**	1.50
Vacation - All the Directors vacating the office	**Ch 1**	**15**	**Section 167**	**1.50**	1.50
Vacation - Grounds for vacation	**Ch 1**	**15**	**Section 167**	**1.49**	1.49
Vacation - Punishment - not vacated	**Ch 1**	**15**	**Section 167**	**1.50**	1.50
VACATION OF OFFICE OF DIRECTOR	**Ch 1**	**15**	**Section 167**	**1.49**	1.49
Validation of certain acts	SEBI Act	15	**Section 34A.**	1.49	1.49
Validity of appointment of Presiding officer and members of SAT	SEBI Act	14	**Section 15MC**	1.33	1.33
Value of interest shall be determined as at the date of the transaction constituting the fraudulent preference	Ch 7	41	Section 331	7.41	7.41
Valuer - Application for certificate of registration	Ch 8	2	Rule 6	8.07	8.07
Valuer - appointment	Ch 8	2	Section 247	8.02	8.02
Valuer - Complaint against a registered valuer or registered valuers organisation	Ch 8	2	Rule 16	8.11	8.11
Valuer - Conditions of Registration	Ch 8	2	Rule 7	8.08	8.08
Valuer - Conduct of Valuation	Ch 8	2	Rule 8	8.09	8.09
Valuer - Contravention	Ch 8	2	Section 247	8.03	8.03
Valuer - Deal of Registration	Ch 8	2	Rule 7	8.08	8.08
Valuer - Definitions	Ch 8	2	Rule 2	8.03	8.03
Valuer - Eligibility for registered valuers	**Ch 8**	**2**	**Rule 3**	**8.04**	8.04
Valuer - Eligibility for registered valuers organisation	Ch 8	2	Rule 12	8.10	8.10
Valuer - Grant of registration	Ch 8	2	Rule 6	8.07	8.07
Valuer - Intimation of change in personal detail etc by register valuer to authority	Ch 8	2	Rule 7A	8.09	8.09
Valuer - Penalties	Ch 8	2	Section 247	8.03	8.03
Valuer - Punishment for contravention	Ch 8	2	Rule 20	8.12	8.12
Valuer - Punishment for false statement	Ch 8	2	Rule 21	8.12	8.12
Valuer - Qualifications and experience	**Ch 8**	**2**	**Rule 4**	**8.06**	8.06
Valuer - Role	Ch 8	2	Section 247	8.02	8.02
Valuer - Temporary surrender	Ch 8	2	Rule 9	8.10	8.10
Valuer - Valuation Examination	Ch 8	2	Rule 5	8.06	8.06
Valuer - Valuation Standards	Ch 8	2	Rule 18	8.12	8.12
Vested with same power as that of a civil court	Ch 9	2	Section 424	9.08	9.08
VIGIL MECHANISM	Ch 3	5B	Section 177	3.21	3.21
VOLUNTARY WINDING UP OF COMPANY, ETC., NOT TO STOP INVESTIGATION PROCEEDINGS	Ch 4	20	Section 226	4.34	4.32
Vote to the adoption of the compromise or arrangementt	**Ch 5**	**2**	**Section 230**	**5.10**	5.10
Voting by Authorised Representative	IBC	3 XIII	Regulation 25A	3.53	3.53
Voting by authorised representative of class of FC	IBC	3 XIII	Section 21	3.47	3.48
Voting on resolution plan	IBC	3 XV	Section 30	3.59	3.59

Topic	Chapter	Heading	Section/Rule/ Regulation	May 25 SM	May 26 SM
Website	SEBI Reg.	6	**Regulation 46(3)**	1.60	**1.61**
What happens if Section 192 is contravened	**Ch 3**	**21**	**Section 192**	**3.70**	**3.70**
What happens to proceeding pending in appeal before Supreme Court or a High Court	**Ch 7**	**11**	**Section 279**	**7.13**	7.13
When any transaction may be treated as fraudulent preference:	**Ch 7**	**38**	**Section 328**	**7.38**	7.38
When FC/ authorized representative is not entitled to participate in the CoC	IBC	3 XIII	Section 21	3.46	3.47
When Moratorium period shall cease to have effect	IBC	3 X	Section 14	3.39	3.40
When no action against the property of the corporate debtor shall be taken	IBC	3 XV	Section 32A	3.61	3.61
When order made by consent of parties	Ch 9	2	Section 421	9.05	9.05
Where assets of a company are insufficient to satisfy its liabilities	Ch 7	29	Section 298	7.28	7.28
Where debts owed to two or more FC	IBC	3 XIII	Section 21	3.47	3.47
Where fraud has been committed	**Ch 4**	**18**	**Section 224**	**4.32**	4.31
Where in addition to the Central Government, any State Government is also a member of a Government company	**Ch 8**	**4 I**	**Section 394**	**8.20**	8.20
Where the Central Government is a member of a Government company	**Ch 8**	**4 I**	**Section 394**	**8.20**	8.20
Where the Central Government is not a member of a Government company	Ch 8	4 II	Section 395	8.21	8.21
Whether it is justifiable that non-executive directors are not liable to be charged, though they were part of the management on the day of the default and will they be penalised?	**Ch 10**	**8**	**Case Study**	**10.55**	10.55
Whether the declaration of dividend @7% by TML leads to non-compliance of the provisions of the Companies Act, 2013?	**Ch 10**	**8**	**Case Study**	**10.52**	10.52
Whether TML has violated the provisions of law regarding maintenance and preserving the Books of Account as per Act?	**Ch 10**	**8**	**Case Study**	**10.52**	10.52
Who can act as an authorised representative?	IBC	3 XIII	Section 21	3.48	3.48
Who can become ID	**Ch 1**	**12**	**Section 149**	**1.37**	1.37
Who can initiate insolvency resolution process?	**IBC**	**3 II**	**Section 6**	**3.24**	3.24
Who may file Complaint before Special Court:	Ch 7	6	Section 274	7.08	7.08
Whole Time Director (WTD)	Ch 2	1	Section 2(94)	2.04	2.04
Will the Transactions be treated as professional misconduct on the part of EP and will he be liable to be charged under section 132(4)	**Ch 10**	**8**	**Case Study**	**10.49**	10.49
Will the Transactions be treated as professional misconduct on the part of EP, CA MP Iyer and will he be liable to be charged under section 132(4)	**Ch 10**	**8**	**Case Study**	**10.46**	10.46
Winding up order to be deemed to be notice of discharge	Ch 7	9	Section 277	7.11	7.11
Withdrawal of application	**IBC**	**3 IIA(7)**	**Section 7**	**3.27**	3.27
Withdrawal of application admitted under section 7, 9 or 10.	IBC	3 IX	Section 12A	3.37	3.37
Withdrawal of application before or after admission	**IBC**	**3 IIB(5)**	**Section 9**	**3.32**	3.32
Woman Director; List of co.s to have WD	**Ch 1**	**2**	**Section 149**	**1.04**	1.04
Women Director	**Ch 1**	**2**	**Rule 3**	**1.04**	1.04
Workmen's dues	Ch 7	36	Meaning	7.34	7.34
Written Consent to act as Director	Ch 1	3	Section 152	1.07	1.07